



CHAPTER xxvii.

An Act to alter the style and title of the corporation of the city of Norwich to make further provision with regard to the water and electricity undertakings of the lord mayor aldermen and citizens of the city and the health local government and improvement thereof and for other purposes.

A.D. 1933.

[28th June 1933.]

WHEREAS His late Majesty King Edward VII was pleased by letters patent bearing date the twenty-fifth day of February nineteen hundred and ten to declare and ordain that the chief magistrate for the time being of the city of Norwich (in this Act called "the city") should be styled entitled and called lord mayor of Norwich and it is expedient that the corporate name of the municipal corporation of the city should be declared and enacted as by this Act provided :

And whereas by the Norwich Corporation Act 1920 provision was made for the transfer to the Corporation of the undertaking of the City of Norwich Waterworks Company and the Corporation are now carrying on that undertaking and supplying water within the city and certain places in the neighbourhood thereof :

And whereas in order to protect their water supply which is derived from the rivers Wensum and Tud it is expedient to enact the provisions which are contained in this Act :

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— And whereas it is expedient to confer further powers upon the Corporation with reference to their water undertaking :

And whereas under and in pursuance of the Norwich Electricity Act and Orders 1902 to 1931 the Corporation are the owners of and are operating the undertaking whereby the city and an extensive area in the neighbourhood thereof are supplied with electricity and it is expedient to confer further powers upon the Corporation with reference to that undertaking and the supply of electricity by them :

And whereas it is expedient to empower the Corporation to acquire the lands referred to in this Act which are situate in the parish of Thorpe (next Norwich) for and in connection with the provision and maintenance of an aerodrome and for other the purposes referred to in section 8 of the Air Navigation Act 1920 and also to confer further powers upon the Corporation with reference to the acquisition retention and disposal of lands :

And whereas it is expedient to make further and better provision with regard to the health local government and improvement of the city and that the powers of the Corporation in regard thereto should be enlarged as is provided by this Act :

And whereas it is expedient to make further provision with regard to the finances of the Corporation and the application of the revenues of their several undertakings :

And whereas the Corporation are the owners of a markets undertaking and it is expedient to enlarge the powers of the Corporation with reference to the tolls which they may demand and take in connection with that undertaking :

And whereas the Corporation have adopted the Local Government and other Officers' Superannuation Act 1922 and it is expedient to enact such further provisions as are in this Act contained with regard to the manner in which superannuation allowances and other payments may be made to officers and servants of the Corporation and to the dependants of such officers and servants :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament : A.D. 1933.

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas a plan showing the lands proposed to be acquired under this Act and a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the county council of the administrative county of Norfolk and are hereinafter respectively referred to as the deposited plan and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1.—(1) This Act may be cited as the *Norwich Corporation Act 1933.* Short and collective titles.

(2) The *Norwich Corporation Acts 1726 to 1920* the *Norwich Electricity (Extension) Special Order 1926* the *Norwich Electricity (Extension) Special Order 1930* the *Norwich Electricity (Extension) Special Order 1931* and this Act may be cited together as the *Norwich Corporation Acts and Orders 1726 to 1933.*

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Corporate name.

Part III.—Water supply.

Part IV.—Electricity.

Part V.—Lands.

Part VI.—Streets buildings sewers and drains.

Part VII.—Infectious disease and sanitary.

Part VIII.—Finance.

Part IX.—Miscellaneous.

Division of Act into Parts.

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Incorporation of
Acts.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exceptions and modification :—

- (i) Sections 127 to 131 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act;
- (ii) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

Interpre-
tation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts 1875 to 1925 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ The Corporation ” means the lord mayor aldermen and citizens of the city of Norwich ;

“ The city ” means the city of Norwich and county of the same city ;

“ The council ” means the council of the city ;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the city ;

“ The town clerk ” “ the surveyor ” “ the medical officer ” “ the chief financial officer ” and “ the sanitary inspector ” mean respectively the town clerk the surveyor the medical officer of health the chief officer charged with keeping the accounts of the Corporation and any sanitary inspector of the city and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

“ The county council ” means the county council of the administrative county of Norfolk ;

“ The water undertaking ” “ the electricity undertaking ” and “ the markets undertaking ” mean

respectively the water undertaking the electricity undertaking and the markets undertaking of the Corporation for the time being;

“The water limits.” means the limits within which the Corporation are for the time being authorised to supply water;

“The electricity limits” means the limits within which the Corporation are for the time being authorised to supply electricity;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“The tribunal” means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“Infectious disease” means (except where otherwise stated) any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the city;

“Sunday school” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not;

“Child” means a person under the age of sixteen years;

“Food” has the meaning assigned to it by section 34 (Definitions) of the Food and Drugs (Adulteration) Act 1928;

“Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction thereof;

“The Minister” means the Minister of Health;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity

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rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“ Authorised security ” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money;

“ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation;

“ The registrar ” means the registrar of stock of the Corporation;

“ The Act of 1889 ” “ the Act of 1902 ” and “ the Act of 1920 ” mean respectively the Norwich Corporation Act 1889 the Norwich Corporation (Electricity &c.) Act 1902 and the Norwich Corporation Act 1920.

PART II.

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CORPORATE NAME.

5.—(1) From and after the passing of this Act the name of the municipal corporation of the city shall be the lord mayor aldermen and citizens of the city of Norwich. Style of
Corpora-
tion.

(2) All charters public and general and local statutes orders confirmed by Parliament byelaws regulations commissions fiats awards judgments and decrees and all bonds conveyances covenants deeds mortgages securities contracts agreements resolutions orders and notices legal and other proceedings and the grant of arms from the Heralds' College and other instruments and documents relating to the Corporation by their original or any other name shall from and after the passing of this Act be read and have effect as if throughout the same respectively wherever the original or other name of the Corporation or a reference to the Corporation by their original or other name occurs the present name of the lord mayor aldermen and citizens of the city of Norwich were substituted.

PART III.

WATER SUPPLY.

6.—(1) Subject to the provisions of this Act the Corporation in addition to any other lands acquired or held by them in pursuance of the Act of 1920 or this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of the water undertaking but (except with the consent of the Minister) the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed ten acres. Power to
purchase
additional
lands by
agreement.

(2) The Corporation may on all or any of such additional lands and also on all or any of the lands for the time being held by them under the powers of the Act of 1920 or this Act execute for the purposes of or in connection with the water undertaking any of the works (other than wells and works for taking or intercepting water) and exercise any of the powers mentioned in or conferred by section 12 (Undertakers subject to provisions of this and the special Act may execute the works herein named) of the Waterworks Clauses Act 1847.

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(3) Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incidental to or connected with the water undertaking but the restrictions of this section shall not apply in respect of lands leased or sold by the Corporation.

(4) The Corporation shall not under the provisions of this section execute any works in contravention of any agreement made or to be made between the Corporation and the Norfolk (East Central) Joint Town Planning Committee upon any lands which are subject to such an agreement.

Prevention
of pollution
of water.

7.—(1) For the prevention of the pollution of any waters which the Corporation have any power to use or take for the purposes of the water undertaking or of any river stream or watercourse through which any water may from time to time flow into any such waters the Corporation may with the consent of the county council and the district council in whose district such pollution occurs or subject to the provisions of this section of one of such councils if the other refuse such consent and decline to do the work themselves enforce the provisions of the Rivers Pollution Prevention Acts 1876 and 1893 or of the Public Health Act 1875 and any Act amending the same with respect to any such waters river stream or watercourse or in respect of any nuisance which may exist in proximity thereto and the Corporation with such consent as aforesaid shall have and may if they think fit from time to time exercise such or the like powers as may for the time being be exerciseable by the county council or such district council (as the case may be) under any enactment for the prevention of the pollution of any such waters river stream or watercourse or for the prevention or abatement of any such nuisance and the provisions of such enactment shall for the purposes aforesaid extend and apply mutatis mutandis to the Corporation.

(2) If the county council and the district council in whose district the pollution occurs or is likely to occur refuse or neglect for the space of three months after being requested by the Corporation by notice in writing under the hand of the town clerk either to enforce the provisions

of the said Acts or to consent to the enforcement thereof by the Corporation the Corporation may appeal to the Minister who may give to them such consent and thereupon the Corporation may proceed to enforce the provisions of the said Acts. A.D. 1933.
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(3) The Minister upon the receipt of such appeal from the Corporation may direct any inquiries into the matter thereof to be held by his inspectors which he may deem necessary before giving such consent as aforesaid and his inspectors shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(4) If in pursuance of any requirement by the Corporation intended to prevent any pollution which might otherwise be a ground for proceedings under subsection (1) of this section any expense is reasonably incurred by any owner or occupier of lands in fencing off any watering place for horses or cattle on any waters which the Corporation have any power to use or take for the purposes of the water undertaking or on any river stream or watercourse through which any water may from time to time flow into any such waters and in providing or maintaining a convenient alternative watering place and supplying or keeping the same supplied with water suitable for the needs of horses and cattle in order to prevent the pollution or the risk of pollution of such waters river stream or watercourse such expense shall be repaid to such owner or occupier by the Corporation and may be recovered by such owner or occupier from the Corporation summarily as a civil debt.

8.—(1) Section 19 (Further powers in relation to water mains) of the Act of 1920 shall have effect as if the words “within the water limits” were omitted from that section. Further powers in relation to water mains.

(2) It shall not be necessary for the Corporation to obtain the report of the surveyor referred to in section 16 of the Public Health Act 1875 before exercising their powers under the said section 19 of the Act of 1920 as amended by subsection (1) of this section.

(3) The Corporation shall not exercise the powers conferred by the said section 19 of the Act of 1920 as amended by subsection (1) of this section on any lands or property belonging to the London and North Eastern

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Amend-
ment of
section 35 of
Waterworks
Clauses
Act 1847.

9. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Corporation be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-eighth part of such expense.

Guarantees
by local
authorities.

10.—(1) A local authority any part of whose district is within the water limits may give and enter into any guarantee or contract for securing payment to the Corporation of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such local authority and the Corporation for the purpose of or with respect to the providing or laying down by the Corporation of any main pipe or works for the supply of water within any part of such district which is within the water limits.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such local authority they may incur expenditure and any such local authority may raise any money which may become payable to the Corporation under this section in like manner as money may be raised under the provisions of any such general Act.

(3) Provided that where such money is raised by a rural district council by means of a rate such rate shall be or shall be deemed to be a special rate but the provisions of this subsection shall not affect the operation of section 56 of the Local Government Act 1929.

Charges for
hosepipes
and re-
frigerating
apparatus.

11.—(1) Where water supplied for domestic purposes is used for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation

may if a hosepipe or other apparatus is used charge (except where the water so used is taken by meter) such sum not exceeding twenty-five shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first. Any sums chargeable under this subsection shall be in addition to the rates for the time being authorised by or under section 31 of the Act of 1920 for the supply of water for domestic purposes and shall be paid and recoverable in all respects with and in the same manner as the said rates. A.D. 1933.

(2) Where water supplied by the Corporation to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hosepipe or other apparatus for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Corporation may if they think fit require that all water so used by means of any such hosepipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

(3) Where a person who takes a supply of water from the Corporation for any purpose desires to use the water so supplied for or in connection with a refrigerating apparatus or for or in connection with any apparatus depending for proper use upon a constant supply of running water (other than apparatus for the purpose of softening water to be used for domestic purposes) the Corporation may if they think fit require that all water used for or in connection with the said apparatus shall—

- (i) be taken by meter on the conditions and at the rates for the time being in force for the supply of water by meter and if the person only takes a supply for domestic purposes the minimum quarterly charge for the water so taken by meter shall be ten shillings; or
- (ii) be paid for on such other terms as may be agreed between such person and the Corporation.

12.—(1) Notwithstanding anything in any Act relating to the Corporation a person shall not be entitled to demand or to continue to receive from the Corporation a supply of water to any caravan shack hut tent or other

Special
terms for
supplies to
caravans
shacks &c.

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(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

(3) Notwithstanding anything in this section or any other provisions of or incorporated with this Act the Corporation shall not (unless required so to do by the Minister) supply water to any caravan shack hut tent or other like structure if the local authority for the district in which the structure is situated objects to the supply being given.

Supply to
houses
partly
used for
trade &c.

13.—(1) The Corporation shall not be bound to supply with water otherwise than by meter—

- (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade business or manufacturing purpose for which water is required; or
- (b) any mental or other hospital (whether public or private) sanatorium club hotel public-house restaurant inn or common lodging-house; or
- (c) any boarding-house or public institution habitually occupied by at least twelve persons.

(2) The amount to be paid under the provisions of this section exclusive of meter rent shall not in any one quarter be less than the sum which would have

been payable in respect of such premises had the supply thereto been furnished at the rate for the time being payable for water supplied for domestic purposes. A.D. 1933.
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(3) Section 35 (As to supply to houses partly used for trade) of the Act of 1920 is hereby repealed.

14.—(1) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate. As to supply to farm-houses.

(2) If the owner or occupier of any farm premises within the water limits desires a supply of water for farming purposes and lays down the necessary communication pipe from such premises to a main of the Corporation the Corporation shall supply to such owner or occupier by meter such quantity of water as the owner or occupier may from time to time reasonably require for such farming purposes Provided that the Corporation shall not be required to supply water under this section at a pressure greater than that to be afforded by gravitation from the reservoir from which such water is supplied nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

15. Subject to the provisions of this Act the price to be charged by the Corporation for a supply of water by measure shall not exceed two shillings and sixpence per thousand gallons. As to price of supply by measure.

16.—(1) Any water rate or charge payable to the Corporation may be collected together with the general rate and the same books may be used for the said rate or charge and the general rate. Water rate &c. may be collected with general rate.

(2) The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate and water rates and charges shall be in such form as the Minister may from time to time prescribe.

(3) The Corporation may demand water rates and charges both within and beyond the city by half-yearly instalments in advance on the first day of April and the first day of October in each year but so that the same shall not be recoverable until the expiration of two

A.D. 1933. — months from the said first day of April and first day of October respectively.

(4) If the Corporation exercise the powers of subsection (3) of this section—

(a) Every person liable to the payment of such rate or charge who shall remove from the premises in respect of which the rate is paid during any part of the period for which the rate or charge is payable shall not be liable for any part of such rate or charge after the day on which he quits the said premises and if any such person shall have paid any rate or charge for any period for which he is not liable he shall be entitled to repayment thereof by the Corporation;

(b) Every person who shall commence to occupy any premises in respect of which a rate or charge for the supply of water for domestic purposes is payable after the commencement of the period for which the rate or charge is payable shall pay so much of such rate or charge as is proportionate to the period for which he occupies the premises.

(5) (a) The Corporation may from time to time if they think fit make an allowance by way of discount not exceeding five per centum on the amount due in respect of any water rate or charge or any instalment thereof from every person who pays the same within such time after demand of the rate or any instalment thereof as the case may be as the Corporation may prescribe.

(b) Provided that the same rate of discount shall be allowed in similar circumstances to every person from whom such water rate or charge or any instalment thereof shall be demanded.

(c) If and so long as the Corporation allow such discount notice of the effect of this enactment shall be endorsed on every demand note for water rates and charges.

As to
rateable
value of
two or more
houses in one
occupation.

17. Where two or more houses or buildings or parts of one or more houses or buildings connected by any internal means of communication or by any bridge subway yard or passage not being a public highway are in the occupation of one and the same

company body firm or person they shall be deemed A.D. 1933.
for the purposes of determining the amount of the
water rate chargeable by the Corporation in respect
of any supply of water for domestic purposes furnished
by the Corporation to such houses or buildings or parts
thereof (being in such single occupation as aforesaid)
to be one tenement having a yearly value (within the
meaning of section 31 of the Act of 1920) equal to
the aggregate yearly values of the separate houses or
buildings or parts of houses or buildings so occupied.

18. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 the waterworks engineer of the Corporation or any person duly authorised by him in writing may at all reasonable times between the hours of seven and nine in the morning and also between the hour of four in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such engineer or authorised person from entering either under the said section 57 or under this section or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and also be liable to a penalty under this section.

Extension
of power to
inspect
premises.

19.—(1) The Corporation shall not be bound to supply more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water :

Separate
communi-
cation pipes
may be
required.

Provided that this section shall not apply in the case of a communication pipe which at the passing of this Act is used for the supply of water to more than one house or part of a house unless and until such communication pipe becomes defective or requires renewal in which event the Corporation may require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement

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(2) If the owner of any house or part of a house occupied as a separate tenement and supplied with water by the Corporation when so required in pursuance of the preceding subsection fails within a period of three months after the receipt of such requirement to provide a separate pipe from the main into such house or part of a house the Corporation may themselves do the work necessary in that behalf and may recover the cost incurred by them in so doing from the owner.

(3) Section 40 (Corporation not bound to supply several houses by one pipe) of the Act of 1920 is hereby repealed.

Corporation
to connect
communi-
cation pipes
with mains.

20. Notwithstanding anything in any Act relating to the Corporation the Corporation shall have the exclusive right of executing any works on any of the water mains of the Corporation for connecting any communication or service pipe therewith and the Corporation shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Corporation execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Corporation in so doing shall be repaid by the owner or occupier so requesting.

Erroneous
meters.

21. If any meter used by a consumer of water be proved to register erroneously such erroneous registration shall be deemed to have first arisen at the beginning of the then current quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as rates for water are recoverable by the Corporation.

Notice of
discon-
tinuance.

22. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation.

23. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Corporation who shall without the authority of the Corporation turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Corporation and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves drawing off water &c.) of the Waterworks Clauses Act 1847.

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Penalty for
interfering
with
valves &c.

24. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing the valve fixed on his communication pipe.

Penalty for
closing
valves and
apparatus.

PART IV.

ELECTRICITY.

25. The Corporation may agree with the owner or occupier of any land across which any electric line has been placed or across which it is intended by the Corporation to place any such line in either case under the provisions of section 22 of the Electricity (Supply) Act 1919 that a term or condition upon which they may place the said line across such land shall be the payment by the Corporation to such owner or occupier of a sum of money in gross and the payment of such sum of money shall if so agreed between the parties secure for the Corporation as against such owner or occupier (as the case may be) and his executors administrators successors and assigns the right to retain and maintain such line across the said land for such period as may be agreed.

Further
provisions
as to
wayleaves.

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Byelaws
as to
charging of
accumu-
lators.

26. The Corporation for the purpose of preventing fire in or injury to any building or premises or injury to any person may make byelaws with respect to the charging of accumulators and such byelaws may provide that in any case in which any contravention thereof is found to exist or to have existed the Corporation may cut off and disconnect the supply of electricity to the building or premises in or on which such contravention takes place.

Byelaws as
to wires
apparatus
and fittings.

27.—(1) The Corporation may make byelaws for the purpose of preventing fire or any injury to persons in any building or premises supplied or proposed to be supplied with electricity by the Corporation with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and may refuse to supply electricity or cut off and discontinue the supply of electricity to any building or premises in which such byelaws are not complied with.

(2) No byelaw made under this section shall apply to or in respect of any building or premises (not being a dwelling-house) belonging to and forming part of the railway or any station or depot adjoining the railway or railway sidings of any railway company or to or in respect of any building or premises to which the Factory and Workshop Act 1901 applies.

Provisions
as to
byelaws
under this
Part of
Act.

28.—(1) Byelaws made under this Part of this Act shall not have any force or effect unless and until they have been confirmed by the Electricity Commissioners and published in such manner as the Electricity Commissioners may direct.

(2) The Corporation may by any byelaws made under this Part of this Act impose on offenders against the same such reasonable penalties as they think fit but not exceeding the sum of five pounds for each offence and in the case of a continuing offence a further penalty not exceeding forty shillings for each day after service of a notice in writing of the offence on such offenders and such penalties may be recovered in a summary manner.

29. The Corporation may levy and recover such charges as they think fit for taking the reading of any electricity meter fixed in a house which is either in whole or in part let furnished at the request of and for the convenience of consumers at times other than those of the periodical readings Provided that such charges shall not exceed the sum of two shillings and sixpence for each reading.

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Charges
for special
readings of
electricity
meters.

30. The powers of the Corporation under section 21 of the Electric Lighting Act 1882 of cutting off supplies of electricity and cutting or disconnecting electric lines or works and of recovering the expenses incurred in so doing shall be exerciseable in any case in which any part of any charge or sum due to the Corporation for electricity supplied by them or in respect of any apparatus or fitting let on hire by the Corporation or supplied by them on hire purchase terms which the Corporation are under obligation to maintain remains unpaid after the expiration of such period from the date of demand thereof as the Corporation may from time to time determine.

Power to
cut off
supplies
where
charges &c.
not wholly
paid.

31.—(1) No consumer to whom electricity is supplied by the Corporation shall without the consent in writing of the Corporation use or suffer to be used (whether after transformation or conversion or not) for purposes of lighting or illumination or for any process operation or purpose involving or requiring the use of light (all of which purposes are in this section referred to as "lighting purposes") the whole or any part of any electricity supplied to him by the Corporation for any other purpose.

Use for
lighting
purposes of
electricity
supplied
for power.

(2) Any consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Corporation through a meter fixed for the purpose of ascertaining the value of the supply to him of electricity agreed to be supplied to him for any purpose other than lighting purposes shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Corporation at such higher rate as they may be charging for the time being for the supply of electricity for the purpose for which the electricity is used by the consumer for all or any portion of the electricity which has been

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A.D. 1933. — supplied to him for any other purpose within one year previous to the date when the Corporation shall sue for any penalty as aforesaid.

(3) Any court having jurisdiction to impose such penalty may and on the application of the Corporation shall decide as to the portion (if any) of such electricity in respect of which the higher charge as aforesaid shall be payable to the Corporation.

(4) The provisions of section 18 (Power to refuse to supply electrical energy in certain cases) of the Electric Lighting Act 1909 shall apply to any person whom the Corporation have reasonable grounds for believing to be acting contrary to the provisions of this section.

Further
powers as
to entry
upon
premises.

32.—(1) The powers conferred by section 24 of the Electric Lighting Act 1882 of entering premises for the purposes mentioned in that section shall extend to enable the Corporation to enter any premises to which electricity is or is proposed to be or has been supplied by them (whether for the time being occupied or not) and in or upon which they have reason to believe that there is or has been any contravention of any Act or Order relating to the electricity undertaking or of any byelaw or regulation made thereunder and to inspect such premises and any electric lines wires fuses casings switches fittings lamps lampholders or other apparatus therein and in any case in which any such contravention is found to exist or to have existed to cut off and disconnect the supply of electricity to the premises.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 or section 16 of the Electric Lighting Act 1909 or this section are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof either personally or if he be unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

(3) Any person who shall refuse or neglect to admit any officer appointed by the Corporation to any premises which he is entitled to enter in pursuance of the said

section 24 the said section 16 or this section or shall A.D. 1933.
 hinder any such officer from entering any such premises
 or from exercising the powers contained in any of the
 said sections shall be liable to a penalty not exceeding
 five pounds and to a daily penalty not exceeding twenty
 shillings.

(4) The provisions of this section shall not apply
 to or in respect of any building or premises (not being
 a dwelling-house) belonging to and used by a railway
 company for the purposes of their railway and forming
 part of any station or goods depot.

33. In any case in which the Corporation lawfully Power to
 cut off a supply of electricity by reason of any act recover
 omission or default of a consumer or any other person cost of
 they may recover from the person to whom the supply cutting off
 was theretofore furnished or from any other person on supplies.
 account of whose act omission or default such supply
 was cut off the reasonable expenses incurred by them
 in such cutting off in like manner as charges for
 electricity are recoverable by the Corporation.

34. The provisions of section 38 (Penalty for Protection
 injuring meters) of the Gasworks Clauses Act 1871 of seals &c.
 incorporated with the Electric Lighting Act 1882 shall belonging
 apply to any person who wilfully fraudulently or by to Corpora-
 culpable negligence injures or detaches or suffers to tion.
 be injured or detached any of the sealing or locking
 devices attached to any sealed or locked receptacle
 meter or apparatus inserted by the Corporation in any
 electric line within a consumer's premises or opens or
 suffers to be opened any such sealed or locked receptacle
 meter or apparatus.

PART V.

LANDS.

35. Subject to the provisions of this Act the Power to
 Corporation may enter on take and use such of the acquire
 lands delineated on the deposited plan and described lands for
 in the deposited book of reference (other than the aerodrome.
 lands which the Corporation are authorised to acquire
 by the Norwich (Stanford Glebe) (Compulsory Purchase)
 Order 1932) as they may require for the provision
 and maintenance of an aerodrome and for other the

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A.D. 1933. — purposes referred to in section 8 of the Air Navigation Act 1920.

Period for compulsory purchase of lands.

36. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the thirty-first day of October nineteen hundred and thirty-six.

Correction of errors in deposited plan and book of reference.

37. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof and if it appear to the justices hearing the application that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk of the county council and a duplicate thereof with the clerk of the Blofield Rural District Council and such certificate or copy or duplicate respectively shall be kept by such clerk with the other documents to which the same relate and thereupon the deposited plan or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands in accordance with such certificate.

Compensation in case of recently acquired interest.

38. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the fifteenth day of November nineteen hundred and thirty-two if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

39. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

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 Power to enter upon property for survey and valuation.

40.—(1) The Corporation may purchase or take on lease dwelling-houses and other buildings for persons employed by them and offices and other buildings and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to the Corporation and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for those purposes.

Dwelling-houses for persons in Corporation's employment.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

41.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the city and with the consent of the Minister may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any money so borrowed shall be repaid within such period as may be prescribed by the Minister.

Further powers for acquisition of lands.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister any capital moneys received by them on the re-sale or

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A.D. 1933. — exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

- (a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister; or
- (b) in such other manner as may be approved by the Minister.

PART VI.

STREETS BUILDINGS SEWERS AND DRAINS.

Banners
and signs
over
streets.

42.—(1) If any banner streamer sign or lettering shall after the passing of this Act be suspended across the carriageway of any street in the city without the permission in writing of the Corporation the occupier of the premises from which the same is suspended or the person responsible for the suspension of such banner streamer sign or lettering shall be liable to a penalty not exceeding twenty shillings and shall forthwith (upon receiving notice in writing from the Corporation requiring him so to do) remove the banner streamer sign or lettering.

(2) The permission of the Corporation under this section shall not be withheld except on the ground that the banner streamer sign or lettering would be a nuisance or objectionable by reason of its size construction or situation or an injury to the amenities of the street across or over which it is suspended and such permission may be given subject to such terms and conditions as the Corporation may think fit.

(3) Any person neglecting or refusing to comply with the requirement of any such notice and any person who shall have removed any such banner streamer sign or lettering as is referred to in any such notice (whether the removal be effected before or after the receipt of the notice) and shall after such removal suspend the same or any similar banner streamer sign or lettering without the permission in writing of the Corporation

or without complying with any conditions attaching to any such permission shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings and the Corporation may themselves remove any such banner streamer sign or lettering and any expense incurred by them in so doing may be recovered by them. A.D. 1933.
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(4) For a period of two years from the passing of this Act the foregoing provisions of this section shall not apply to any such banner streamer sign or lettering as is referred to in subsection (1) hereof which was in use on the twenty-sixth day of November nineteen hundred and thirty-two.

(5) Any person aggrieved by any requirement of any notice of the Corporation under this section or the withholding of permission by the Corporation or the conditions attached to any such permission under the provisions of this section may appeal to a court of summary jurisdiction within fourteen days after the date of such notice or the intimation to him of such withholding or of the attaching of such conditions and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just. Notice of the right to appeal shall be endorsed on every notice or intimation of the Corporation under this section.

(6) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

43.—(1) No person shall without the consent of the Corporation erect or place against or in front of any house or building any projection for advertising purposes which extends for more than two feet over any street or which extends for more than six inches over any street and is more than two feet six inches in height from the top to the bottom thereof. Projecting signs.

(2) The consent of the Corporation under this section shall not be withheld except on the ground that in their opinion the projection would be objectionable by reason of its size construction or situation or would be a danger or an injury to the amenities of the street and such consent may be given subject to such terms and conditions as the Corporation may think fit.

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(3) Any person who offends against the provisions of this section or the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) (a) Any person aggrieved by the withholding by the Corporation of any consent under the provisions of this section may within fourteen days from the date of the decision of the Corporation appeal to a court of summary jurisdiction.

(b) Any person so appealing shall give or cause to be given written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal and the court shall have power to make such order in the matter of the appeal as the court may think fit and to award costs.

Restric-
tions on
advertise-
ment
hoardings.

44.—(1) For the purpose of preserving the amenities of the city it is hereby enacted that it shall not be lawful to erect any hoarding or similar structure in or abutting on or adjoining any street to be used either partly or wholly for advertising purposes to a greater height than twelve feet without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

(2) Any person acting in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) (a) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may within fourteen days from the date of such refusal or grant (as the case may be) appeal to a court of summary jurisdiction.

(b) Any person so appealing shall give written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal and the court shall have power to make such order in the matter as the court may think fit and to award costs.

(4) The consent of the Corporation under this section shall not be necessary for a hoarding or similar structure

erected within any railway station or upon any property of a railway company except in so far as such hoarding or similar structure fronts upon a public street. A.D. 1933.

45. The Corporation may by notice in writing require the owner of or other person using any hoarding wall fence or similar structure for advertising purposes to maintain the same and any advertising matter thereon in good order and condition and if any such owner or person shall neglect or refuse to comply with any such notice the Corporation may carry out such alterations or repairs as may be reasonably necessary and recover from such owner or person any expense incurred by them in so doing. Repair of hoardings.

46.—(1) Before placing or erecting any hoarding wall (not being a wall forming part of the structure of a permanent edifice) fence or similar structure at or within a distance of ten yards from the corner of any street the person proposing to place or erect such hoarding wall fence or similar structure shall give notice of his intention so to do to the Corporation and such notice shall be accompanied by plans and particulars of the hoarding wall fence or similar structure proposed so to be placed or erected. As to erection of hoardings &c. at street corners.

(2) If the placing or erection of such hoarding wall fence or similar structure would in the opinion of the Corporation constitute a danger to traffic by obstructing the view of any foot passenger or the driver of any vehicle in a street of vehicular or pedestrian traffic the Corporation may within one month of the receipt of the said notice prohibit such placing or erection or may allow the same subject to such conditions or modifications of the said plans and particulars as they may think fit. If within one month of the receipt of the said notice the Corporation shall not have prohibited such placing or erection or allowed the same subject to a condition or to a modification of such plans or particulars they shall be deemed to have allowed such placing or erection.

(3) Any person who places or erects any hoarding wall fence or similar structure in contravention of the provisions of this section shall be liable to a penalty not exceeding five pounds and the Corporation may remove the hoarding wall fence or similar structure so

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A.D. 1933. — placed or erected and may recover the expense incurred by them in so doing from such person.

(4) (a) Any person aggrieved by any requirement or prohibition or by the withholding of any approval of or by the Corporation under this section may within fourteen days from the date of such requirement prohibition or withholding of approval appeal to a court of summary jurisdiction.

(b) Any person so appealing shall give written notice thereof to the town clerk before lodging his appeal and the court shall have power to make such order in the matter as the court may think fit and to award costs.

(5) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

As to
hoardings
and similar
structures.

47.—(1) (a) No hoarding wall fence or other similar structure (in this section referred to as a "structure") of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street shall be erected or brought forward on any land in any street—

(i) beyond any building line prescribed by the Corporation in respect of the land under the provisions of any Act; or

(ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings under subsection (2) of section 100 of the Housing Act 1925; or

(iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

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(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down and remove any structure retained in contravention of such notice.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a moveable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

(4) The provisions of this section shall not apply to a wall (not being a wall of a dwelling-house) constructed by or belonging to or which may hereafter be constructed by or belong to a railway company in the exercise of their statutory powers so long as such wall is used or held by such railway company primarily for railway purposes.

48.—(1) Section 157 of the Public Health Act 1875 is hereby extended so as to enable the Corporation to make byelaws providing in such manner as they may think necessary that any person intending to erect—

Further
power to
make
byelaws
as to new
buildings
&c.

(a) a new building; or

(b) an addition to or alteration of an existing building (including the reconstruction of an existing addition to any such building); or

(c) a chimney exceeding forty-five feet from the ground in height;

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A.D. 1933. — shall furnish the Corporation with drawings or other sufficient indication of the design or external appearance of the building addition to or alteration of existing building or chimney including such indication of the materials to be used in its construction as may be necessary for the purpose (in this section called collectively "the specifications").

(2) Where specifications are required to be submitted to the Corporation by a byelaw made under the said section 157 as extended by this section the Corporation shall within one month after the submission to them of the specifications by notice in writing—

(a) approve the specifications; or

(b) if they shall consider that having regard to the character of the locality and of the neighbouring buildings the building or addition or alteration or chimney to which the specifications relate would seriously disfigure the street whether by reason of the height design or external appearance of the building or addition or alteration or chimney disapprove the specifications and in that event the notice shall be accompanied by a statement of the grounds of the disapproval.

(3) Where by reason of any improvement made by the Corporation any land shall become land which adjoins or abuts on any street and the owner lessee or occupier of any such land shall construct—

(i) any door or entrance communicating with that street; or

(ii) any wall or fence by the side of that street;

he shall construct the door entrance wall or fence in such position and in accordance with such elevations as may be approved by the Corporation and the Corporation shall make compensation to the owner of any land for any loss or damage he may suffer by reason of the setting back or bringing forward of such wall or fence. If the Corporation shall not signify their approval or disapproval of the elevations within one month after they shall have been submitted to them they shall be deemed to have approved thereof.

(4) (a) Any person aggrieved by any disapproval by the Corporation under subsection (2) or subsection (3) of this section may appeal against their decision to a court of summary jurisdiction within fourteen days from

the date of such decision and the court shall have power to make such order as the court may think fit and to award costs. The grounds on which a person may appeal to a court of summary jurisdiction under this subsection or to a court of quarter sessions under the section of this Act of which the marginal note is "As to appeals" shall include the ground that compliance with the Corporation's decision would involve an increase in the cost of the building or of the addition or alteration or of the chimney door entrance wall or fence which would be unreasonable having regard to the character of the locality and of the neighbouring buildings.

A.D. 1933.

(b) Any person so appealing shall at the same time give or cause to be given written notice of such appeal and of the grounds thereof to the town clerk.

(5) Where the specifications of a building or addition or alteration or chimney or the elevations of a door or entrance or wall or fence have been disapproved under this section it shall not be lawful to erect the building or addition or alteration or chimney or door or entrance or wall or fence until the specifications or elevations (as the case may be) thereof have been approved by the Corporation and any person who offends against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(6) The provisions of paragraph (b) of subsection (1) of this section in its application to buildings existing at the passing of this Act shall not apply to a wooden hoarding which is used solely for the purposes of poster advertising.

(7) This section shall not apply to a building (not being a dwelling-house showroom or office) belonging to any person or body of persons authorised by virtue of any Act of Parliament or any Order having the force of an Act of Parliament to manufacture or store gas and used or intended to be used exclusively for such purposes under the provisions of such Act of Parliament or Order.

49.—(1) Every building erected after the passing of this Act exceeding two storeys in height and in which the upper surface of the floor of any upper storey is above twenty feet from the street level and which is used or intended to be used as flats or as a tavern hotel

Means of escape from buildings in case of fire.

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A.D. 1933. — hospital nursing home boarding-house common lodging-house or boarding-school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant shall be provided with such portable fire-fighting and portable first-aid appliances as the Corporation may require and shall also be provided on each of the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in case of fire for the persons dwelling sleeping or employed in each such upper storey or resorting thereto as may be reasonably required by the Corporation in the circumstances of the case and the owner shall not permit such building to be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) From and after the first day of January nineteen hundred and thirty-four the Corporation in the case of every existing building exceeding two storeys in height and used or intended to be used as flats or as a tavern hotel hospital nursing home boarding-house common lodging-house or boarding-school or as a shop or restaurant in which sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop or restaurant if in the opinion of the Corporation such building is not provided with proper and sufficient fire-fighting and first-aid appliances and proper and sufficient means of escape in case of fire from each upper storey the upper surface of the floor whereof is above twenty feet from the street level for the persons dwelling sleeping or employed in each such upper storey may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such portable appliances and means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the appliances and means of escape so required.

(3) (a) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the

grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. A.D. 1933.
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(b) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

(4) If the owner of the building alleges that any occupier should bear or contribute to the expenses of complying with any requirement of the Corporation under this section he may apply to the county court of Norfolk holden in the city and thereupon the said county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable in all the circumstances of the case.

(5) The owner of the building shall notwithstanding any agreement with the occupier have power to take such steps as are necessary for complying with any requirement of the Corporation under this section.

(6) The appliances and means of escape in case of fire provided in connection with any such building as aforesaid shall not be altered without the consent in writing of the Corporation and shall at all times be maintained and kept by the occupier of the building in good and efficient condition and (in the case of such means of escape) free from obstruction.

(7) This section shall not apply to premises to which section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or any enactment amending those sections apply.

(8) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(9) Where an existing building is converted into flats after the passing of this Act it shall be deemed to be a new building within the meaning of this section.

50. The erection or placing of any pile stack or store of cut or uncut timber lathwood firewood casks As to timber stacks &c.

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A.D. 1933. or barrels shall be deemed to be the erection of a new
— building for the purposes of—

- (a) the Public Health (Buildings in Streets) Act 1888;
- (b) subsection (3) of section 5 of the Roads Improvement Act 1925;
- (c) the conditions referred to in subsection (2) of section 100 of the Housing Act 1925.

Extension
of power
to make
building
byelaws.

51.—(1) Section 157. (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 in its application to the city shall be extended so as to empower the Corporation to make byelaws—

- (a) with respect to the materials with which new buildings shall be constructed;
- (b) for requiring work to be done in connection with the alteration whether in use or structure of a building or part thereof for securing stability and the prevention of fire and for purposes of health;
- (c) with respect to the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or re-set in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the passing of this Act;
- (d) with respect to the uniting of buildings and the making and stopping up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united;
- (e) with respect to the adequate lighting of buildings;
- (f) with respect to the testing of drains of new buildings;
- (g) with respect to the securing that waterclosets shall be so constructed and supplied with water that they can be adequately flushed by mechanical means and the provision to be made for securing the protection of the same from frost;

(*h*) with respect to the provision of fixed baths in such classes of new dwelling-houses as may be prescribed in the byelaws; A.D. 1933. —

(*i*) for ensuring that any hole made through the wall of a building below the level of the ground shall be so stopped as to prevent the passage of gas into the building through such hole otherwise than by means of a gas main or pipe;

(*j*) for securing that any geyser or similar gas heated water apparatus of the rapid water-heating type or gas apparatus for heating a building or any part of one is properly fixed and adequately ventilated:

Provided that—

(i) any byelaws made under paragraphs (*b*) (*c*) (*d*) (*i*) or (*j*) of this subsection or under the said section 157 with respect to the ventilation of a room in which any apparatus of the kind specified in the said paragraph (*j*) is fixed may be made so as to affect buildings erected before the times mentioned in the said section 157;

(ii) before making any byelaw under this section in relation to the fixing of geysers or other gas heated water apparatus or gas apparatus for heating a building the Corporation shall give reasonable notice thereof to the British Gas Light Company Limited who shall be entitled to make representations to and be heard by the Corporation thereon.

(2) For the purpose of framing any such byelaws in relation to buildings to be constructed wholly or partly with metal framework or of reinforced concrete and with respect to the use and composition of metal for framework and of reinforced concrete in the construction of buildings the Corporation may carry out such investigations and make such tests as they may deem necessary.

(3) The said section 157 shall also in its application to the city be read and have effect as if it empowered the Corporation to require by byelaws the deposit

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A.D. 1933. — of plans and sections by persons intending to construct any drain in connection with a building.

(4) The power given by subsection (4) of section 23 (Extension of 38 & 39 Vict. c. 55 s. 157) of the Public Health Acts Amendment Act 1890 to make byelaws with respect to the alteration of buildings shall be extended so as to authorise byelaws with respect to the alteration of buildings whether or not erected in accordance with byelaws and with respect to the submission of such plans and sections as can be required in relation to the erection of a new building.

Power to
construct
inspection
chambers
in manu-
facturing
premises.

52.—(1) The Corporation shall in their discretion have the power of constructing within any manufacturing premises (but outside any building forming part thereof) at the cost of the Corporation and without any liability on their part for compensation in respect thereof an inspection chamber or chambers and such chamber or chambers shall be accessible to the officers of the Corporation at all times for the purpose of ascertaining the nature of the discharge from such premises into the sewers of the Corporation :

Provided that nothing in this section shall apply to any premises belonging to a railway company and used by such railway company as a part of or in connection with their undertaking under any Act of Parliament.

(2) Any such inspection chamber shall be in such position as may be agreed between the Corporation and the owner of the said premises or failing agreement as may be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such determination.

(3) Any person who shall obstruct the Corporation or any official of the Corporation in the exercise of the powers of this section shall be liable to a penalty not exceeding ten pounds.

(4) Any samples of effluent taken on behalf of the Corporation from any inspection chamber constructed on the premises of the British Gas Light Company Limited under this section shall be taken in duplicate and one of such samples shall be left with the company.

53.—(1) In the case of any building which may appear to the Corporation on the report of any duly qualified officer to be dangerous to the inmates or persons working therein the Corporation may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the town clerk at any hour of the day between nine in the morning and six in the afternoon with such other persons as he may deem necessary enter upon such building and examine and inspect the same.

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As to
dangerous
buildings.

(2) If upon such examination and inspection it shall appear necessary that any works should be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures.

54. Section 23 (Extension of 38 & 39 Vict. c. 55 s. 157) of the Public Health Acts Amendment Act 1890 in its application to the city shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section.

Area &c.
of habitable
rooms.

55.—(1) (a) No tent van railway carriage (other than a railway carriage belonging to and used by a railway company for the purposes of its railway undertaking) shed or similar structure used or intended to be used for human habitation shall be placed or kept on any land situate within the city without the previous approval of the Corporation.

Prohibition
of tents
vans &c.

(b) It shall not be lawful for any person without the previous approval of the Corporation to let or permit to be used any land for occupation by any tent van railway carriage (other than a railway carriage belonging to and used by a railway company for the purposes of its railway undertaking) shed or similar structure used or intended to be used for human habitation unless the surface of such land is covered with concrete or other suitable material and unless

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(c) Land furnished in compliance with this subsection with a separate supply of water shall be deemed to be a house for the purposes of the provisions relating to the supply of water for domestic purposes.

(2) Any person aggrieved by the withholding by the Corporation of any approval under the provisions of this section may within twenty-one days from the date of the decision of the Corporation appeal to a court of summary jurisdiction provided he give notice in writing of such appeal and of the grounds thereof to the town clerk before lodging the appeal and such court may make such order on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(3) This section shall not apply to (a) a tent van shed or similar structure unless it is used or intended to be used as a means of habitation for a period of at least three months or (b) any person dwelling in a tent or van or other similar structure who is a roundabout proprietor travelling showman or stall-holder not being a pedlar or hawker.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Provisions
as to tents
vans &c.

56.—(1) Any tent van railway carriage (other than a railway carriage belonging to and used by a railway company for the purposes of its railway undertaking) shed or similar structure standing upon land abutting upon a street shall for the purpose of section 3 of the Public Health (Buildings in Streets) Act 1888 in its application to the city be deemed to be a house or building within the meaning of those words where they first occur in the said section.

(2) It shall not be lawful without the written consent of the Corporation to place any tent van railway carriage (other than a railway carriage belonging to and used by a railway company for the purposes of its railway

undertaking) shed or similar structure used for human habitation so as to stand upon any square court alley or passage to which the public have access or which is required by law to be left free from obstructions. A.D. 1933.
 —

(3) Any person who offends against the provisions of subsection (2) of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

57. The Corporation may exercise the powers of a local authority under section 62 of the Public Health Act 1875 (which relates to the provision of a proper water supply) and of an urban authority under section 22 of the Public Health Acts Amendment Act 1890 (which relates to the provision of sanitary conveniences in workshops and manufactories) on the report of the medical officer or the sanitary inspector as well as on the report of the surveyor. As to powers of requiring sanitary conveniences for manufactories &c.

58. The Corporation may make byelaws for preventing—
 (a) grease and fat from any club hotel public-house inn slaughter-house butcher's shop fried fish shop or similar premises; or
 (b) any oil or grease from any stable garage motor works or similar premises; Certain matters from hotels shops garages &c. not to be discharged into sewers.

from being discharged or thrown or suffered to be discharged or thrown or to pass into any sewer or into any drain connecting with such sewer.

59.—(1) Whenever it is necessary to open or break up any part of a street for the purpose of laying down or constructing along such part of a street any drain which is intended to be connected either directly or indirectly with any sewer the Corporation may if they think fit themselves lay down or construct so much of such drain as shall be under or in the said street and the cost or estimated cost to be incurred by them in so doing shall be secured to the Corporation to their satisfaction by the person who would lay down or construct so much of such drain as aforesaid if the Corporation did not exercise the powers of this section. Powers of Corporation respecting construction of drains.

(2) Any person who shall commence the laying down or construction of so much of any such drain as aforesaid after the Corporation shall have given notice

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A.D. 1933. — of their intention to construct the same in accordance with the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Corporation shall not under the powers of this section open or break up any part of a street belonging to and repairable by a railway company or so as to obstruct the access to or exit from any station or depot of a railway company except with the consent in writing of the railway company but such consent shall not be unreasonably withheld and any question as to whether in any case such consent is unreasonably withheld shall be determined by a single arbitrator to be appointed (failing agreement) by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Act 1889 shall apply to any such arbitration.

Saving for
certain
railway
companies.

60. Nothing in the sections of this Part of this Act of which the marginal notes are—

Extension of power to make building byelaws;

As to dangerous buildings;

shall extend or apply to any building (not being a dwelling-house) street railway or work constructed by or belonging to or which may hereafter be constructed by or belong to the London and North Eastern Railway Company or the Midland and Great Northern Railways Joint Committee in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by such railway company or committee with the authority of Parliament so long as any such building street railway work or land is used or held by the said railway company or committee primarily for railway purposes.

PART VII.

INFECTIOUS DISEASE AND SANITARY.

Power to
close
Sunday
schools and
exclude
children
from enter-
tainments.

61.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a

specified time such requirement shall at once be complied with. A.D. 1933.

(2) Any person responsible for the conduct or management of any Sunday school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

62.—(1) No person of or exceeding the age of sixteen years who has the custody charge or care of a child who is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease or of a child who is suffering from an infectious disease or who with the view of preventing the spread of infectious disease has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school or place of public entertainment or assembly in the city without having procured from the medical officer or school medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

Restriction on attendance of children at Sunday schools and places of assembly when infectious disease prevails.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

63.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for washing or mangling from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

Names of laundrymen to be furnished.

(2) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

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—
Extended
meaning of
“infectious
disease”
for certain
purposes.

64.—(1) For the purposes of the foregoing provisions of this Part of this Act the expression “infectious disease” includes measles german measles whooping cough chicken pox ringworm influenza mumps and scabies as well as infectious disease as defined by the section of this Act of which the marginal note is “Interpretation.”

(2) For the purposes of section 126 of the Public Health Act 1875 as amended by section 62 of the Public Health Acts Amendment Act 1907 the expression “dangerous infectious disorder” includes infectious disease as defined by the section of this Act of which the marginal note is “Interpretation” and also (in the case of exposure in covered buildings or public conveyances) measles and whooping cough.

For
prevention
of infection
arising
from sale of
oysters &c.

65.—(1) In case the medical officer has reasonable cause to believe that any person in the city is suffering from infectious disease attributable to oysters or other shell fish brought from any particular oyster bed or place or to watercress brought from any particular stream or other source and sold within the city or that the consumption of oysters or other shell fish brought from any particular oyster bed or place or watercress brought from any particular stream or other source and sold within the city is likely to cause infectious disease to any person residing in the city he shall report thereon to the Corporation and the Corporation may thereupon give notice to the vendor to appear before them within such time not less than twenty-four hours as may be specified in the notice to show cause why an order should not be made requiring him not to sell oysters or other shell fish or watercress brought from the oyster bed or place stream or source mentioned in the notice until such order has been withdrawn by the Corporation and if in the opinion of the Corporation he fails to show such cause then the Corporation may make such order as aforesaid and shall forthwith give notice of the facts to the Minister.

(2) An order made by the Corporation under this section shall be forthwith withdrawn on the Corporation or the medical officer on their behalf being satisfied that the cause of infection has been removed.

(3) Any person selling any oysters or other shell fish or watercress within the city in contravention of an order

under this section shall be liable to a penalty not exceeding five pounds. A.D. 1933.

(4) No vendor of oysters or other shell fish or water-cress shall be liable to an action for breach of contract if the breach shall be due to an order of the Corporation under this section.

(5) Offences under this section may be prosecuted and penalties may be recovered by the Corporation before a court of summary jurisdiction having jurisdiction in the place where the oyster bed or place or stream or other source (as the case may be) is situate or the offence is committed and not otherwise.

(6) A person on whom an order has been made under subsection (1) of this section may appeal against such order or against the refusal of the Corporation to withdraw such order either to a court of summary jurisdiction having jurisdiction within the city or at his option to the Minister who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the city and give notice thereof to the person on whom such order was made and to the town clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of an inspector of the Minister under section 296 of the Public Health Act 1875.

(7) The Minister may at any stage require payment to him by the person on whom such order was made of such sum as he deems right to secure the payment of any costs incurred by the Minister in the matter of the appeal.

(8) The court or the Minister as the case may be may confirm vary or annul the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Minister as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Corporation.

(9) If an order is made without due cause or if the Corporation unreasonably refuse to withdraw the order the person on whom such order is made shall if not himself in default be entitled to recover from the Corporation full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Corporation to withdraw the order.

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(10) The court or the Minister may determine and state whether an order the subject of appeal has been made without due cause and whether the Corporation have unreasonably refused to withdraw the order and whether the person on whom such order was made has been in default.

(11) Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or the Minister or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that section shall accordingly apply and have effect as if the same were herein re-enacted and in terms made applicable to any such dispute as aforesaid.

Prohibition
on infected
person
carrying on
business.

66. If a person who is suffering from an infectious disease or who is living in a house in which there is a case of infectious disease knowingly engages in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household or knowingly carries on any trade or business connected with food in such a manner as to be likely to spread the infectious disease he shall be liable to a penalty not exceeding forty shillings.

Registration
of ice-cream
and
preserved
meat manu-
facturers
and
premises.

67.—(1) (a) No person shall carry on the business of a manufacturer or vendor of or dealer in ice-cream or of a manufacturer of preserved meat unless he be registered by the Corporation.

(b) No premises shall be used for the manufacture for sale or sale of ice-cream or for the preparation or manufacture of preserved meat unless such premises are registered by the Corporation.

(c) Any person who offends against the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The Corporation may refuse to register any such person or premises or (after giving one month's notice in writing to the person registered or in whose name any such premises are registered) revoke the registration of such person or premises as regards the former on the ground that the public health is or is

likely to be endangered by any act or default of such person who is registered or who seeks to be registered as a manufacturer or vendor of or dealer in ice-cream or as a manufacturer of preserved meat in relation to the quality storage or distribution of the ice-cream or preserved meat and as regards the latter upon the ground that the premises are not suitable to be used for the purposes aforesaid :

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—

Provided that before refusing or revoking such registration the Corporation shall serve upon the applicant for registration or upon the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall deliver to the person applying for such registration or to the person registered or in whose name the premises are registered a statement in writing of the ground or grounds upon which such refusal or revocation is based Notice of the right to appeal next hereinafter mentioned shall be endorsed on every such notice.

(c) Any person aggrieved by any such refusal or revocation may appeal to a court of summary jurisdiction provided that such appeal be made within fourteen days from the date of the refusal to register or of the notice of revocation.

(d) Any person so appealing shall give written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal and the costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(e) On any such appeal the court may by order confirm the refusal or revocation or direct the Corporation to register the person or premises or to retain him or them upon the register and the Corporation shall comply with any such direction.

(3) In this section the expression "ice-cream" includes any other similar commodity and the expression "preserved meat" includes sausages and any potted pressed pickled or preserved meat fish or other food.

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(4) The provisions of this section shall not apply to any premises used as a club or hotel or railway refreshment rooms or as a theatre music-hall or other similar place of entertainment.

(5) The provisions of this section shall come into force on the first day of January nineteen hundred and thirty-four.

Power to
prohibit
persons
suffering
from
tuberculosis
from
handling
&c. food.

68.—(1) If the medical officer shall certify that any person in the city is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed in the cooking preparation or handling of food (other than milk to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply) intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Corporation may request such person to discontinue his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such discontinuance.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to discontinue his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Corporation to such person.

(3) If such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

Further
extension
of section 72
of Public
Health Act
1925.

69.—(1) Section 72 of the Public Health Act 1925 in its application to the city shall (except in relation to subsection (3) and paragraph (e) of subsection (2) of that section) be read and have effect as if the words “the “ Factory and Workshop Act 1901 as amended by any “ subsequent enactment or ” were omitted from subsection (1) of that section.

(2) The said section 72 as so amended shall in its application to the city be read and have effect as if the

following provision were added after subsection (2) A.D. 1933.
thereof (that is to say) :—

“The occupier of any room to which this section applies and which is used for the preparation of food for sale or (except in the case of food contained in receptacles so closed as to exclude all risk of contamination) for the sale of food shall cause to be provided in connection with the room—

- (i) a satisfactory water supply; and
- (ii) suitable washing-up sinks with a sufficient supply of hot water together with an adequate supply of soap and towels for the use for toilet purposes of persons employed therein.”

(3) The said section 72 (except paragraphs (d) and (e) of subsection (2) thereof) shall apply so far as applicable to a yard (not being a yard to which any regulation made under the Public Health (Regulations as to Food) Act 1907 applies) in which food is prepared for sale or in which any food other than food contained in receptacles so closed as to exclude all risk of contamination is sold or is stored or kept with a view to future sale.

70.—(1) On any inspection of any room or yard carried out by the medical officer sanitary inspector or any other officer of the Corporation under the provisions of subsection (5) of section 72 of the Public Health Act 1925 as extended by subsection (3) of the last preceding section of this Act such officer shall have power to take samples of any materials commodities or articles of food found therein making reasonable payment therefor and if he intends to submit any sample to analysis he shall forthwith notify to the occupier of such room or yard or his agent his intention to have the same analysed by the public analyst and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such manner as its nature will permit and shall if required to do so deliver one of the parts to such occupier or agent. The officer shall afterwards retain one of the said parts for future comparison and submit the third part if he deems it right to have the sample analysed to the public analyst.

As to
inspection
of premises
used for
storage
of food.

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(2) The expression "public analyst" in this section means the analyst appointed by the Corporation in pursuance of section 15 of the Food and Drugs (Adulteration) Act 1928.

Penalty on
original
vendor of
unsound
meat.

71.—(1) Where it is shown that any animal or article liable to be seized under section 116 of the Public Health Act 1875 (as extended by section 28 of the Public Health Acts Amendment Act 1890) and found in the possession of any person was sold to him by another person for food (the proof that the same was not sold for food resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in the last-mentioned section unless he proves that at the time he sold the animal or article he did not know and had no reason to believe that it was in such condition.

(2) Where any animal or article of food has been condemned by a justice under section 117 of the Public Health Act 1875 (as extended by section 28 of the Public Health Acts Amendment Act 1890 and this section) the person to whom the same belongs or did belong at the time of deposit of such animal or article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in section 117 of the Public Health Act 1875 unless he proves that at the time of such deposit he did not know and had no reason to believe that the said animal or article was in such a condition as to be liable to be so condemned.

(3) Before any animal or article liable to be condemned under section 117 of the Public Health Act 1875 (as extended by section 28 of the Public Health Acts Amendment Act 1890 and this section) is dealt with by a justice the medical officer or the sanitary inspector shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or sanitary inspector of the intention of the medical officer or sanitary inspector to have the same dealt with by a justice and any person who may be liable in respect of such animal or article to prosecution under the

aforesaid provisions shall be entitled to attend the proceedings before the justice and to be heard with his witnesses upon the application for the condemnation of any such animal or article. A.D. 1933. —

72. Sections 116 to 118 of the Public Health Act 1875 (as amended by section 28 of the Public Health Acts Amendment Act 1890) shall extend to authorise the medical officer or the sanitary inspector to inspect examine and search any cart or other vehicle or any basket sack bag or parcel whether open or closed in which he has reason to suspect that there is any animal or any of the articles referred to in the said sections intended for sale or in the course of delivery after sale for food and the provisions of such sections shall apply accordingly Provided that in the exercise at any railway station or upon any railway premises of a railway company of the powers conferred upon him by this section the medical officer or the sanitary inspector shall conform to such reasonable requirements of the railway company owning or using such station or premises as are necessary to prevent the working of their traffic being obstructed or interfered with and with respect to any cart or other vehicle belonging to any such company the powers conferred upon the medical officer or the sanitary inspector by this section shall be so exercised as not unreasonably to obstruct or interfere with the collection or delivery of goods by any such company. Further powers in relation to unsound food.

73.—(1) The medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may at any premises provided by the Corporation within the city for the purposes of section 80 of the Education Act 1921 examine the person and clothing of any child and if on examination the medical officer or any such authorised person as aforesaid shall be of opinion that the person or clothing of any such child is infested with vermin or is in a foul or filthy condition the medical officer may give notice in writing to the parent or guardian or other person who is liable to maintain or has the actual custody of such child requiring such parent guardian or other person to cleanse properly the person and clothing of such child within twenty-four hours after the receipt of such notice. Cleansing of children and their clothing.

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(2) If the person to whom any such notice as aforesaid is given fails to comply therewith within the prescribed time the medical officer or some person provided with and if required exhibiting the authority in writing of the medical officer may remove the child referred to in such notice from any premises provided as aforesaid and may cause the person and clothing of such child to be properly cleansed in suitable premises and with suitable appliances and if necessary for that purpose may without any warrant other than this Act convey to such premises and there detain such child until such cleansing is effected.

(3) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) Where after the person or clothing of a child has been cleansed under the provisions of this section the parent or guardian or other person liable to maintain the child allows him to get into such a condition that it is again necessary to proceed under this section the parent guardian or other person shall be liable to a penalty not exceeding ten shillings.

(5) The examination or cleansing of females under this section shall only be effected either by a person duly qualified as a medical practitioner or by a female person being a member of the staff of or duly authorised by the medical officer.

(6) Any notice required to be given under this section shall be deemed to be properly served by giving it to the person to whom it is addressed or leaving it for him with some inmate of his residence or by sending the same by post in a registered letter to his usual or last-known residence. In any such notice it shall be sufficient to designate the person to be served as the parent guardian or other person liable to maintain or having the actual custody of the child whose person or clothing requires to be cleansed.

Notice to
be given
of this Part
of Act.

74.—(1) Public notice of the effect of the foregoing provisions of this Part of this Act shall be given as soon as is reasonably practicable after the passing of this Act by advertisement in two newspapers published or circulating in the city.

(2) Copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with. A.D. 1933. —

75.—(1) The Corporation may make and enforce byelaws for preventing meat or any part of the carcass of an animal brought into the city and intended for food from being offered for sale or sold or deposited for sale or for preparation for sale until after inspection by an officer of the Corporation. Byelaws as to inspection of meat.

(2) No byelaw made by the Corporation under subsection (1) of this section shall apply to meat or any part of a carcass to which the Public Health (Imported Food) Regulations 1925 apply or which has been inspected and passed as fit for food by the medical officer of health of the district in which the animal has been slaughtered or by a duly qualified inspector being an official of or authorised to act on behalf of the sanitary authority of such district but the Corporation shall be entitled to require reasonable proof that the meat has been inspected and passed as aforesaid.

(3) With a view to facilitating the carrying into effect of any byelaws made in pursuance of this section an officer of the Corporation may with the consent of the local authority concerned enter any slaughter-house which is situate outside the city but within a circle having a radius of twenty miles from the guildhall of the city for the purpose of inspecting any carcass or any part thereof intended for sale or consumption in the city.

(4) At least one month before applying to the Minister for confirmation of any byelaws made under this section the Corporation shall give notice to the Norwich and District Master Butchers' Association and to the councils of each of the rural districts which are adjacent to the city of the Corporation's intention to make such application and such notice shall be accompanied by a copy of the proposed byelaws and the said association and councils shall be entitled to make representations to the Minister with regard thereto.

(5) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1927 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

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Removal
of infirm
and
diseased
persons in
certain
cases.

76.—(1) If the medical officer certifies in writing that any person in the city—

(a) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

(b) is suffering from any grave chronic disease;

and that such person is unable to devote to himself or to receive from persons with whom he resides proper care and attention or that there is reasonable ground to fear that fire may arise in such premises and that thorough inquiry and consideration have shown the necessity in the interest of the health or safety of such person and for preventing injury to the health of or danger or serious nuisance to other persons that he should be removed from the premises in which he is residing the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination of such person by a registered medical practitioner to be nominated by the court (if it thinks fit) may make an order for the removal of such person to a suitable hospital infirmary or other institution or other suitable place provided within the city or within a convenient distance of the city and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period or periods each not exceeding three months as may be determined by any further order or orders made under and in accordance with the provisions of this section.

(2) The medical officer shall give to any person proposed to be removed under the provisions of this section or to some person being in charge of such person three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The cost of the removal of any person to a hospital infirmary or other institution or place as aforesaid and of his detention and maintenance therein in pursuance of an order made under this section shall unless otherwise ordered by the court be borne by the Corporation and during any period for which a person

is so detained the Corporation may and if so required by the court shall make towards the maintenance of any dependants of that person such contributions as the Corporation think fit or as may be directed by the court as the case may be. A.D. 1933.
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(4) An order under this section may be addressed to such officer of the Corporation or to such constable as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case it is of opinion that it is right and proper that such rescission order should be made.

Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the Corporation so to do either generally or in any particular case in which those powers are proposed to be exercised and no order shall be made under the provisions of this section for the removal of any person to any voluntary hospital or charitable institution without the consent in writing of the controlling body thereof.

77.—(1) The Corporation may by agreement purchase any slaughter-house and premises connected therewith or any part of such slaughter-house or premises or the Corporation may agree with the occupier of such slaughter-house or premises with the consent in writing of any other person having an interest therein entitling him to require the user of such premises as a slaughter-house for the discontinuance of the user thereof as a slaughter-house and may remove such slaughter-house from the register of slaughter-houses. Power to purchase slaughter-houses.

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(2) The purchase of such slaughter-house and premises and any arrangement as aforesaid for the discontinuance of the user thereof shall be deemed to be purposes of the Public Health Act 1875 and for the purposes of such purchase the Corporation may exercise the powers of borrowing conferred by that Act.

Power to
close
slaughter-
houses if
injurious
to public
health.

78.—(1) (a) The Corporation may by written notice to the owner and occupier of any registered slaughter-house which from its situation or construction is in the opinion of the Corporation injurious or dangerous to the public health or which shall have remained unused as a slaughter-house for a period of six months require that the premises shall cease to be used as a slaughter-house on and after such date (not being less in the case of a slaughter-house which is in the opinion of the Corporation injurious or dangerous to public health than six months from the service of such notice) as may be specified in the notice and no person shall after such date slaughter in the way of trade any cattle horse sheep or pig on the said premises.

(b) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its construction is in their opinion injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier thereof specifying the respects in which such slaughter-house is in their opinion so injurious or dangerous and also specifying their requirements with regard thereto and if within the said period of three months the owner or occupier of such slaughter-house shall have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation.

(c) Provided also that such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground that the requirements contained therein are unreasonable and unnecessary in the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister by the Minister and unless and until the Minister shall have determined that the said requirements are reasonable and

necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question. A.D. 1933.
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(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house (other than a slaughter-house which has remained unused as a slaughter-house for a period of six months) who shall be injuriously affected by any requirement of the Corporation under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875 Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall be liable for each offence to a penalty not exceeding five pounds.

79.—(1) Section 44 of the Public Health Act 1875 shall extend to empower the Corporation to make byelaws for regulating the tipping of dust spoil and refuse and for prohibiting the use of any land as a refuse tip so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof. Byelaws as to tipping refuse.

(2) The Corporation may by any byelaws made by them in pursuance of this section impose on offenders against the same such penalties as they think fit not exceeding the sum of fifty pounds for each offence and in the case of a continuing offence a daily penalty not exceeding ten pounds Section 183 of the Public Health Act 1875 shall not apply in the case of byelaws made in pursuance of this section.

(3) Without prejudice to any other available remedy the Corporation if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Public Health Act 1875 authorised to proceed with respect to a nuisance of whose existence they are satisfied and sections 94 to 104 inclusive of that Act with any necessary modifications shall apply accordingly.

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(4) Provided that a person offending against any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 96 of the Public Health Act 1875 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a daily penalty under the byelaws and to a penalty under section 98 of the Public Health Act 1875 (as so applied) for failing to carry out an order or acting contrary to an order.

(5) No byelaw under this section shall extend to regulate or control the tipping of spoil and refuse by a railway company for the purpose of constructing widening or maintaining any railway works.

Regulation
dustbins.

80.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse shop or other premises to provide a sufficient number of covered galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Corporation.

(2) Every owner or occupier having provided any such dustbin pursuant to this section shall maintain the same in good order and condition.

(3) The foregoing provisions of this section shall not apply to any covered ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are portable properly covered and of suitable material size and construction and in proper order and condition.

(4) It shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(5) (a) The owner or occupier of any premises in connection with which a dustbin has been provided as required by this section shall if so required by the Corporation pay to the Corporation on each first day of April after such provision such sum not exceeding three shillings as the Corporation may from time to time by resolution determine for or towards the main-

tenance repair and renewal by them of such dustbin A.D. 1933.
Such payments shall be in satisfaction of the obligation
of such owner or occupier in regard to the maintenance
of such dustbin.

(b) Any sum due to the Corporation under the provisions of this subsection may be collected with the general rate and may (without prejudice to any other method of recovery) be recovered summarily as a civil debt. Provided that where two or more persons are liable for the payment of the general rate in respect of a dwelling-house or dwelling-houses for which a dustbin or dustbins is or are maintained by the Corporation the charge authorised by this subsection may be collected and recovered from such persons in such proportions as the Corporation may determine to be reasonable.

(c) Any occupier paying any sum due to the Corporation under the provisions of this section may (in cases where any sum so paid is payable by the owner of the premises) deduct any sum so paid by him from the amount of rent payable by him to the owner of the dwelling-house in respect of which the dustbin or dustbins is or are maintained.

(d) The Corporation shall pay all moneys received by them under this subsection into the general rate fund and shall pay all expenses incurred by them thereunder out of the general rate fund and the Corporation shall keep an account of all such receipts and expenses.

(6) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section (as the case may be) shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

(7) Nothing in this section shall apply to any warehouse or other premises belonging to a railway company from which the Corporation do not remove refuse.

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Cleansing
of dwelling-
houses in
certain
cases.

81.—(1) When the medical officer certifies in writing that any dwelling-house is in an insanitary condition and that the occupier thereof is unable through infirmity or mental incapacity to remedy such condition and that the health of such occupier or of any persons residing in the dwelling-house is thereby endangered a court of summary jurisdiction may on the application of the Corporation (who shall give to the occupier seven days' notice of their intention to make such application) make an order for the removal of such occupier and persons to an institution or other dwelling for such period as the court may by such order direct as being necessary to enable the Corporation to cleanse and disinfect the dwelling-house and the Corporation may carry out the removal and such cleansing and disinfection of the dwelling-house as may be necessary.

(2) The cost of the maintenance of any such occupier or persons at any such institution or other dwelling in pursuance of an order made under this section shall (unless and except so far as may be otherwise ordered by the court) be borne by the Corporation.

Byelaws
as to
transport
of food.

82.—(1) The Corporation may make byelaws for promoting and securing sanitary and cleanly conditions in the transport of any article intended to be sold for food.

(2) At least one month before applying to the Minister for confirmation of any byelaws made under this section the Corporation shall (if such byelaws are applicable to the transport by a railway company of any article intended for food) give notice to the railway company of the Corporation's intention to make such application and such notice shall be accompanied by a copy of the proposed byelaws and the said company shall be entitled to make representations to the Minister with regard thereto.

PART VIII.

FINANCE.

Creation of
stock.

83.—(1) Whenever the Corporation determine to raise by the creation and issue of stock any money which they have power to borrow under any statutory borrowing power they may by resolution of the council create and issue stock within the limits of the power

at such price to bear such half-yearly or other dividends and to be so transferable (that is to say in books or by deed) as the Corporation by the resolution direct. A.D. 1933.
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(2) Any resolution creating stock shall provide that the stock so created shall be redeemable by the Corporation at par and at such time and in such manner as the Corporation by that resolution declare.

(3) Each resolution for creation of stock shall specify that the stock thereby created is redeemable.

(4) Stock so created shall be designated by the Corporation as "Norwich Corporation three and a half per centum (or such other rate of dividend per centum as shall be payable thereon) redeemable stock" with the addition of such other particulars (if any) as the Corporation may think fit.

(5) After the expiration of such a period from the creation of any class of stock under subsection (2) of this section as the Corporation shall by resolution creating that class declare all stock comprised therein shall be redeemable at par at the option of the Corporation and within such a period (not exceeding sixty years from the first creation of that class of stock) as the Corporation shall by such resolution declare the whole of the stock comprised therein shall be redeemed or purchased and extinguished.

(6) All stock created and issued under this section shall be subject to the provisions of the Act of 1889 as altered by subsequent Acts.

(7) A separate loans fund to bear the name given to it by the resolution creating any class of stock authorised by this section shall be established and formed in respect of that class and all the provisions of the Act of 1889 as altered by subsequent Acts in regard to the Norwich Corporation consolidated loans fund shall mutatis mutandis apply to the loans funds so to be established and formed.

84.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the payment of the costs charges and expenses of this Act the sum or sums requisite and in order to secure the repayment of the said sum or sums and the payment of interest thereon they may mortgage or charge the revenues of Power to borrow.

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Act, 1933.

A.D. 1933. — the Corporation and they shall pay off all moneys so borrowed within the period of five years from the passing of this Act (which period for the purposes of this Act shall be "the prescribed period").

(2) (a) The Corporation may also with the consent of the Electricity Commissioners borrow such further money as may be necessary for any of the purposes of Part IV (Electricity) of this Act and may with the consent of the Minister borrow such money as may from time to time be necessary for the purposes of the markets undertaking and for providing a fund for working capital for any of their undertakings other than the electricity undertaking and such further money as may be necessary for any of the other purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister or Commissioners with whose consent it is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

Power to
borrow by
issue of
bonds.

85.—(1) In addition to any other form of borrowing the Corporation may exercise any statutory borrowing power by the issue of bonds to be called "Corporation bonds" (and in this Act referred to as "bonds") in accordance with the provisions of this Act.

(2) The provisions set out in the schedule to this Act shall have effect with regard to bonds.

(3) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907.

(4) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

86. The Corporation shall pay off all moneys borrowed by them under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within one year (or when the money is repaid by half-yearly instalments within six months) of the date of borrowing.

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Mode of
payment
off of
money
borrowed.

87.—(1) If the Corporation determine to repay by means of a sinking fund any money borrowed by virtue of any statutory borrowing power (other than money borrowed by the issue of stock) such sinking fund shall be formed and maintained by payment out of the general rate fund to the sinking fund throughout the prescribed period of either—

Sinking
fund.

(a) such equal annual sums as will together amount to the money for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) (i) such equal annual sums as will with accumulations at a rate not exceeding three pounds per centum per annum or such other rate as the Minister may from time to time approve be sufficient to pay off within the prescribed period the money for the repayment of which such sinking fund is formed and (ii) such annual sums as are equivalent to interest on the amount which should from time to time be standing to the credit of the sinking fund at the rate per centum per annum on which the annual payments to the fund under paragraph (i) hereof are based A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund shall (unless applied in repayment of the loan in respect of which the sinking fund is formed or otherwise in any manner authorised by this Act) be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) The Corporation may at any time apply the whole or any part of any sinking fund in or towards

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A.D. 1933. the discharge of the money for the repayment of which the sinking fund is formed. Provided that if it is an accumulating sinking fund the Corporation shall nevertheless continue to pay into the fund each year during the residue of the prescribed period the sums which would have been required to be paid under the provisions of subparagraph (ii) of paragraph (b) of subsection (1) of this section if such sinking fund or part thereof had not been so applied.

(4) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this section shall be paid by the Corporation out of the general rate fund in addition to the payments provided for by this section and charged to that fund.

(5) If it appears to the Corporation at any time that the amount in any sinking fund with the future payments thereto in accordance with the provisions of subsections (1) and (3) of this section will not be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(6) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(7) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of subsections (1) and (3) of this section will in the opinion of the Minister be more than sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(8) If the amount in any sinking fund at any time together with (if an accumulating sinking fund) the

payments thereto by way of interest under paragraph (b) A.D. 1933.
(ii) of subsection (1) and under subsection (3) of this
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section will in the opinion of the Minister be sufficient
to repay within the prescribed period the money for the
repayment of which the sinking fund is formed the
Corporation may with the consent of the Minister discon-
tinue the payment of the equal annual sums to such
sinking fund until the Minister shall otherwise direct.

(9) Any surplus of any sinking fund remaining after
the discharge of the whole of the money for the repay-
ment of which it was formed shall be applied to such
purpose or purposes as the Corporation with the consent
of the Minister may determine.

(10) The foregoing provisions of this section shall
also apply with respect to any sinking fund formed by the
Corporation for the repayment of any money borrowed
before the commencement of this Act under any statutory
borrowing power and the Corporation shall make such
adjustments of any existing sinking funds and of their
books and accounts relating thereto as they may think
proper Provided that nothing in this subsection shall
authorise the Corporation to apply or use any existing
sinking fund or any part thereof in any manner other
than a manner in which they are authorised by this Act
to apply or use sinking funds.

88. In each year the Corporation shall pay out of
the general rate fund or the general rate into any loans
fund established and formed by them a sum or sums
equal to the aggregate amount of all dividends payable
in that year on the several portions of stock issued in
exercise of the respective statutory borrowing powers of
the Corporation and remaining outstanding.

Contribu-
tions to
loans fund
for
dividends.

89.—(1) In each year the Corporation shall pay into
the appropriate loans fund out of the general rate fund
or general rate a sum or sums equal to the aggregate
amount of all sums payable in that year for redemption
and extinction or purchase and extinction of the several
portions of stock issued in exercise of the respective
statutory borrowing powers of the Corporation and
remaining outstanding :

Contribu-
tions to
loans fund
for
extinction
of stock.

Provided that where any stock issued after the
commencement of this Act has been issued at a price
lower than par so much of the stock as represents the

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A.D. 1933. — difference between the price of the stock as issued and its nominal value shall for the purposes of this section be treated as a loan authorised by a statutory borrowing power and repayable on or before the date at which the stock is first redeemable at par at the option of the Corporation.

(2) The amounts paid into the appropriate loans fund in any year in accordance with this section shall be—

(i) such amounts as with accumulations at a rate not exceeding the rate of three pounds per centum per annum or such other rate as the Minister may from time to time approve be from time to time calculated to be sufficient to purchase at par the portion of stock towards the purchase and extinction whereof those contributions are payable within the prescribed period; and

(ii) such annual sums as are equivalent to interest on the amount which should from time to time be in the loans fund in respect of such stock at the rate per centum per annum on which the annual payments to the loans fund under paragraph (i) hereof are based.

(3) The provisions of subsections (5) (7) (8) and (9) of the section of this Act of which the marginal note is "Sinking fund" shall with any necessary modifications apply to and in respect of the loans fund as if that fund were referred to in those subsections instead of any sinking fund.

(4) If the Corporation desire to accelerate the repayment of any loan represented by stock they may increase the amount of the contributions applicable to the redemption of that stock for such time as they may think fit.

(5) The Corporation shall invest in statutory securities the sums paid into the loans fund in accordance with this section unless those sums are applied in any manner authorised by this or any other Act.

(6) If the extinction of any portion of stock or any part thereof is accelerated by the application to such extinction of any part of the loans fund then the

Corporation shall nevertheless continue to pay into the loans fund each year during the residue of the prescribed period the sums which would have been required to be paid under the provisions of paragraph (ii) of subsection (2) of this section if such part of the loans fund had not been so applied as aforesaid :

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Provided that if any amount of stock extinguished by application of part of the loans fund is purchased by the Corporation at a rate exceeding par the sums to be paid into the loans fund under the foregoing provisions of this subsection shall be calculated as if that amount of stock had been purchased at par but the Corporation shall either pay into the loans fund during the year in which the purchase is made an additional sum equal in amount to the sum paid in excess of par for the purchase of stock in that year or shall during that year and each succeeding year until the expiration of the period allowed for the continuance of the loan represented by the stock so extinguished or until the expiration of the period after which the stock is first redeemable at par at the option of the Corporation whichever shall first happen pay into the loans fund such additional sum (if any) as the Minister shall approve.

90.—(1) The expenses incurred by the Corporation in or about the creation and issue of stock so far as they are properly chargeable to capital shall be deemed to be money raisable under a statutory borrowing power.

Expenses of
issue of
stock.

(2) If the Corporation create and issue stock for the purpose of defraying the expenses of the creation and issue of any stock the amount of stock created and issued for that purpose shall be redeemable and extinguished within the same period within which the stock is to be redeemed and extinguished for the purpose of defraying the expenses of which it was so created and issued and for the purpose of determining the amount of the contribution to the loans fund under the section of this Act of which the marginal note is " Contributions to loans fund for extinction of stock " the amount of the said expenses shall be deemed to be the amount of a loan authorised by a statutory borrowing power and required to be paid off on or before the date at which the stock is first redeemable at par at the option of the Corporation.

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Application
of Stock
Regulations
1932.

91. Articles 3 4 5 and 6 of the Stock Regulations 1932 shall with any necessary modifications apply to and in respect of the issue of stock by the Corporation under the provisions of the Act of 1889 as amended by subsequent enactments and for the purpose of such application—

- (1) “local authority” means the Corporation; and
- (2) “registrar” has the meaning assigned to “the registrar” by the section of this Act of which the marginal note is “Interpretation.”

All stock
and loans
to rank
equally.

92.—(1) Subject to any priority existing at the passing of this Act all authorised securities and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(2) Any reference in any mortgage or charge granted by the Corporation to the revenue of any undertaking or fund of the Corporation shall be deemed to be a reference to the revenues of the Corporation.

Consoli-
dated loans
fund.

93.—(1) Notwithstanding anything contained in this Act or in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and thirty-four the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid—

- (a) all moneys borrowed by the Corporation by the issue of authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of

debt or for the repayment of debenture stock and debentures issued by the City of Norwich Waterworks Company or the Norwich Electricity Company Limited for which the Corporation are liable under the provisions of any enactment: A.D. 1933.
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And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

(a) in the redemption of any authorised securities or such debenture stock and debentures as aforesaid the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and

(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys of the consolidated loans fund not used or applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate account shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve or of any capital reserve renewals depreciation contingent insurance accident or other similar fund (in this section referred to as "the lending fund") and not for the

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A.D. 1933. — time being required and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions :—

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and

(b) In the accounts of the general rate fund an amount equal to interest (calculated at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings) on any moneys so used and for the time being not repaid shall be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of authorised securities or such debenture stock and debentures as aforesaid shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Use of
moneys
forming
part of
sinking
and other
funds.

94. Notwithstanding anything contained in this Act or in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve or as a capital reserve renewals depreciation contingent insurance accident or other similar fund (in this section referred to as "the lending fund") subject to the following conditions :—

(1) The moneys so used shall be repaid out of the general rate or the general rate fund to the lending fund within the period and by the methods within and by which a loan raised under the statutory borrowing power would be repayable :

Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding (as the case may be) as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the general rate or the general rate fund or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power : A.D. 1933.

- (2) In the accounts of the general rate fund an amount equal to interest calculated at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power on any moneys so used and for the time being not repaid shall be credited to the lending fund and debited to the undertaking or purpose with reference to which the moneys are so used :
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

95.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers or the liability for which attaches to them under any enactment shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of this Act in regard to the borrowing and repayment of money with or without modification and may make

Scheme for fixing equated period and consolidating loans.

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A.D. 1933. — provision in regard to all matters incidental to the objects aforesaid.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Minister who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act.

(3) Nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the Minister may be consolidated and dealt with in the accounts of the Corporation as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the Minister separate consolidations may be made of all or any of the loans included under such general headings.

(5) The Corporation may with the sanction of the Minister and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of authorised securities for their consent thereto and any moneys so borrowed shall be repaid within such period as the Minister may sanction.

(6) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Protection
of lender
from
inquiry.

96. A person lending money to the Corporation under any statutory borrowing power shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or of the conditions attaching

to the statutory borrowing power under which the money is borrowed or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. A.D. 1933.
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97.—(1) Where more persons than one are registered as joint holders of any authorised security any one of them may give an effectual receipt for any interest or dividend thereon unless notice to the contrary has been given to the chief financial officer or in the case of stock to the registrar by any other of them. Interest on securities held jointly.

(2) Where any authorised security is standing in the name of an infant or person of unsound mind jointly with any person not under legal disability a letter of attorney for receipt of the interest or dividend on the security shall be sufficient authority in that behalf if given under the hand or seal of the person not under disability attested by two or more credible witnesses but the Corporation or the registrar as regards stock may before acting on the letter of attorney (if they or he think fit) require proof to their or his satisfaction of the alleged infancy or unsoundness of mind by a statutory declaration of one or more competent persons.

98. An authorised security may be registered by the Corporation or the registrar in the name of a society company or body and the receipt of the secretary or other authorised officer of such society company or body for any document of title to the security or for any dividend or interest or other sum of money payable in respect thereof shall be a sufficient discharge to the Corporation for the document or sum of money in respect of which such receipt is given. As to registration of authorised securities.

99. If any money is payable to the holder of any authorised security and the holder is a minor idiot or lunatic the receipt of the guardian or the committee or the receiver of his estate shall be a sufficient discharge to the Corporation. Receipt in case of persons no sui juris.

100. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except Evidence of transfer or transmission of securities.

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A.D. 1933. — securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 may apply) except upon the production to and temporary deposit with the town clerk or the registrar (as the case may be) of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Dividend
warrants
by post.

101.—(1) The Corporation may give notice to any person being registered as a holder of any authorised security that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Corporation of such objection the Corporation may from time to time send letters containing orders for the payment of interest or dividend warrants to the address of such person appearing in the register. Provided that if such person give notice to the Corporation that he desires such orders or warrants to be sent to another person at a given address the Corporation may from time to time send letters containing the same to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Corporation by any other of them.

(3) The posting by the Corporation of a letter containing an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

Closing of
transfer
books.

102.—(1) The Corporation may close any transfer books or the registers of transfers of authorised securities (other than stock) on any day in the month next before

that in which any instalment of interest on such authorised securities is payable but so that the books or registers be not at any time kept closed for more than fifteen days. A.D. 1933.
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(2) The persons who on such closing day are entered in any book or register as holders of any securities of the class of which the book or register is so closed shall as between them and the transferees of those securities be entitled to the interest or dividends next payable thereon.

103.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power. Return to Minister with respect to repayment of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the chief financial officer and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and

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A.D. 1933. — any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment in force in the city immediately before the passing of this Act requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

As to
making up
accounts.

104.—(1) Notwithstanding anything in the Municipal Corporations Act 1882 the chief financial officer shall make up the accounts of the Corporation yearly to the thirty-first day of March.

(2) (a) Within three months from the thirty-first day of March in each year the chief financial officer shall submit the said accounts with the necessary vouchers and papers to the auditors of or appointed by the Corporation and the said auditors shall audit the said accounts.

(b) After the audit of the said accounts the chief financial officer shall cause an abstract thereof to be printed.

Receipts
and
expenses.

105.—(1) As from the first day of April nineteen hundred and thirty-three all money received by the Corporation whether on capital or revenue account (including all money received by the Corporation on account of the revenue of any undertaking of the Corporation as from time to time existing from which revenue is derived and interest and other annual proceeds from time to time received by the Corporation on the investments forming part of any reserve or of any fund accumulated for the redemption of debt or as a capital reserve renewals depreciation contingent insurance accident consolidated loans or other similar fund) shall be carried to and form part of the general rate fund and all payments and expenses made and incurred by the Corporation in respect of any such undertaking or in carrying into execution the powers and provisions of this or any other Act (including the placing to the credit of the appropriate reserve or fund in the accounts of the Corporation of an amount equivalent to such interest and other annual proceeds as aforesaid subject to any prescribed limit on the amount of such reserve or fund) shall be paid out of the general rate fund or the general rate.

(2) Nothing in this section shall authorise the Corporation to apply capital money to any purpose other than purposes to which capital money is properly applicable. A.D. 1933. —

106.—(1) As from the first day of April nineteen hundred and thirty-three the Corporation shall notwithstanding the provisions of any Act or Order to the contrary keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation as from time to time existing from which revenue is derived (each of which is in this section separately referred to as “the undertaking”) on the one side all receipts in respect of the undertaking including the income from any reserve authorised in connection with the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing— Accounts.

- (a) the working and establishment expenses and cost of maintenance of the undertaking;
- (b) in the case of the water and electricity undertakings the interest on the debenture stock and debentures issued by the City of Norwich Waterworks Company and the Norwich Electricity Company Limited respectively for which the Corporation are liable under the provisions of any enactment;
- (c) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (d) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking (including in the case of the water and electricity undertakings moneys for the redemption of the said debenture stock and debentures);
- (e) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (f) any money expended on any of the purposes mentioned in subsection (1) of the next succeeding section of this Act.

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(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Application
of revenue
of under-
takings.

107.—(1) If in any year commencing on or after the first day of April nineteen hundred and thirty-three moneys received by the Corporation on account of the revenue of any undertaking of the Corporation as from time to time existing from which revenue is derived exceed the moneys expended by the Corporation in respect of that undertaking in respect of the expenses mentioned in paragraphs (a) (b) (c) (d) and (e) of subsection (1) of the last preceding section of this Act the Corporation may in respect of that year (if they think fit) apply out of the general rate fund a sum equal to the amount of such excess in any of the following ways :—

(a) In reduction of capital moneys borrowed for the purposes of the undertaking;

(b) Subject in the case of the electricity undertaking to the consent of the Electricity Commissioners in the construction renewal extension and improvement of the works and conveniences for the purposes of the undertaking;

(c) In providing a reserve in respect of each of the undertakings (such reserve to be included within and to form part of the general rate fund) by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any manner authorised by this Act) investing the same in statutory securities until the reserve so provided amounts—

(i) in the case of the electricity undertaking to a sum equal to one-tenth of the aggregate

capital expenditure of the Corporation on A.D. 1933.
that undertaking;

(ii) in the case of any other undertaking to the maximum reserve for the time being prescribed by the Corporation but not exceeding in the case of the water undertaking a sum equal to one-fifth of the aggregate capital expenditure of the Corporation upon that undertaking.

(2) Any reserve or renewals contingency or depreciation fund which has been formed for the purposes of any undertaking of the Corporation from which revenue is derived and which is in existence at the commencement of this Act shall be carried to and form part of the general rate fund and shall be deemed to be part of a reserve provided under paragraph (c) of subsection (1) of this section.

(3) The Corporation shall in every year so long as any reserve provided under this section is less than the maximum prescribed by or under this section carry to the credit of that reserve in the accounts of the general rate fund an amount equal to the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the reserve and carried to the general rate fund.

(4) Any reserve provided under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or (except in the case of the electricity undertaking) for payment of the cost of renewing improving or extending any part of the works forming part thereof or (except in the case of the electricity undertaking) otherwise for the benefit of that undertaking and so that if that reserve be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(5) Resort may be had to a reserve provided under the foregoing provisions of this section although such reserve may not at the time have reached or may have been reduced below the prescribed maximum.

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Provision
as to
surplus
electricity
revenue.

108.—(1) The following provisions shall apply with respect to the electricity undertaking (in addition to the provisions of the section of this Act of which the marginal note is “Application of revenue of undertakings”) (namely):—

If in any year the accounts of the electricity undertaking kept under the section of this Act of which the marginal note is “Accounts” shall show that the revenue of the electricity undertaking in respect of that year (including if and so long as any reserve provided in connection with the electricity undertaking amounts to a sum equal to one tenth part of the aggregate capital expended for the time being upon that undertaking the interest and other annual proceeds received by the Corporation in respect of that year on the investments forming part of that reserve) has exceeded the total amount of the payments and expenses in respect of the year for the several purposes in relation to the electricity undertaking which are mentioned in paragraphs (a) (b) (c) (d) (e) and (f) of subsection (1) of the last-mentioned section then—

(a) if the reserve in respect of the electricity undertaking does not amount to more than one-twentieth of the said aggregate capital an amount equal to such excess shall be deemed for the purpose of the section of this Act of which the marginal note is “Accounts” to be revenue of the electricity undertaking in respect of the next following year and a reduction shall be made in the charges for electricity supplied by the Corporation of such respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the said excess;

(b) if the said reserve amounts to more than one-twentieth of the said aggregate capital such amount as the Corporation may think fit (not being less in cases where the said excess is more than a sum equal to one and a half per centum of the outstanding debt of the electricity undertaking than the

difference between the said excess and that sum) shall be deemed for the purposes of the said section of this Act of which the marginal note is "Accounts" to be revenue of the electricity undertaking in respect of the next following year and a reduction shall be made in the charges for electricity supplied by the Corporation of such respective amounts as will as nearly as reasonably practicable be equivalent in the aggregate to the amount so deemed to be revenue.

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(2) Subsection (1) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be deemed to have ceased to be incorporated with any of the Norwich Corporation Acts 1726 to 1920 or with the Norwich Electricity (Extension) Special Order 1926 the Norwich Electricity (Extension) Special Order 1930 and the Norwich Electricity (Extension) Special Order 1931.

109.—(1) The Corporation may (if they think fit) establish a fund to be called "the insurance fund" with a view of providing a sum of money which shall be available for making good all losses damages costs and expenses to which the Corporation may be subjected in consequence of the whole or any part of all or any of the following risks (that is to say):—

Insurance
fund.

- (a) Risk of fire in respect of buildings works premises and the contents thereof and other property whether belonging or on loan to or under the care custody or control of the Corporation;
- (b) Risk of accident and claims by third parties in respect of any vehicles whether belonging to or hired by or under the control of the Corporation and whether drawn or propelled by man or horse or mechanical or other means or power;
- (c) Risk of explosion in respect of boilers;
- (d) Risks under the common law the Employers' Liability Act 1880 the Workmen's Compensation Act 1925 or any Act or Acts for the time being amending or extending those Acts or otherwise

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in respect of accidents to the officers servants or workmen of the Corporation or to third parties;

- (e) Risks of injuries to school children through accident caused by the negligence of a teacher attendant or other person or defect in any school premises of or leased to the Corporation;
- (f) Risks of mechanical or electrical breakdown at or in connection with any of the works of the Corporation;
- (g) Risks of loss due to infidelity of officers or servants of the Corporation;
- (h) Any other risks against which in the absence of such an insurance fund the Corporation would ordinarily insure.

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices of good repute against the whole or any part of all or any of the several risks for which the insurance fund is intended to provide.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

- (a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the several risks for which the insurance fund is intended to provide; or
- (b) if the Corporation insure in some insurance office of good repute against the whole or any part of all or any of the several risks for which the insurance fund is intended to provide such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to one hundred and fifty thousand pounds the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below one hundred and fifty thousand pounds the Corporation

shall re-commence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the sum of one hundred and fifty thousand pounds. A.D. 1933.
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(5) The Corporation shall provide the yearly payments aforesaid by contributions from the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking or department of the Corporation which if the risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of risks for which the fund is intended to provide all moneys for the time being standing to the credit of the fund shall (unless applied in any manner authorised by this Act) be invested in statutory securities.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the fund is less than one hundred and fifty thousand pounds pay into that fund out of the general rate fund an amount equal to the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund.

(c) If and so long as the insurance fund amounts to one hundred and fifty thousand pounds the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) For the purposes of this section the Corporation may if they deem it expedient include in the risks provided for under paragraph (d) of subsection (1) of this section risks of accident to any teacher employed in any public elementary school maintained by the

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A.D. 1933. Corporation notwithstanding that such school has not been provided by the Corporation as the local education authority.

(8) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of risks for which it is intended to provide in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister and on the security of the revenues of the Corporation borrow at interest under and subject to the provisions of this Act such sums of money as will be necessary to make up the deficiency. The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Minister may direct having regard to the risks through which such deficiencies arise.

Capital
reserve
fund.

110.—(1) The Corporation may establish a fund to be called “the capital reserve fund” for the purpose of defraying any expenditure to which capital is properly applicable to an amount not exceeding five thousand pounds in any one transaction and such fund shall be formed by appropriating in the accounts of the Corporation such sums out of the general rate fund as the Corporation from time to time deem expedient :

Provided that—

- (a) Except as provided by subsection (2) (b) of this section any sum or sums so appropriated to the capital reserve fund from the general rate fund shall not exceed in any year the equivalent of a rate of twopence in the pound calculated according to the rules made pursuant to section 9 of the Rating and Valuation Act 1925 ;

(b) appropriations to and payments into the capital reserve fund shall cease to be made whenever the said fund amounts to the sum of fifty thousand pounds. A.D. 1933.

(2) (a) Pending the application of the capital reserve fund to the purposes authorised in the foregoing subsection the moneys in the fund shall unless applied in any other manner authorised by this Act be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the capital reserve fund in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by proviso (b) to subsection (1) of this section) an amount equivalent to such income shall be credited to the capital reserve fund.

111.—(1) The Corporation may if they think fit in any year carry from the general rate fund or from the proceeds of the general rate to the credit of a fund to be called "the renewal and repairs fund" (such fund to be included in and form part of the general rate fund) (a) any sum not exceeding an amount equal to twelve and one-half per centum of the cost incurred by the Corporation (otherwise than for the purposes of the water electricity and markets undertakings) in connection with the provision of horses carts mechanically propelled vehicles stables depots boilers and equipment and apparatus in connection therewith as shown in the accounts at the thirty-first day of March in any such year and (b) any sum not exceeding the average annual cost incurred by the Corporation during the previous three years in connection with the maintenance and repair of buildings. Renewal and repairs fund.

(2) The maximum amount standing to the credit of the renewal and repairs fund shall not at any time exceed twenty-five thousand pounds.

(3) The renewal and repairs fund shall be applicable only to meet expenses requisite for the maintenance and renewal of the appliances works equipment and buildings referred to in subsection (1) of this section which are not comprised in the water electricity and markets undertakings and shall be so applied from time to time for

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A.D. 1933. — the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

(4) Any moneys standing to the credit of any existing fund formed by the Corporation for the purposes for which the renewal and repairs fund is authorised to be formed shall be carried to the credit of that fund in the accounts of the Corporation.

(5) (a) Pending the application of the renewal and repairs fund to the purposes authorised in subsection (3) of this section the moneys in the fund shall unless applied in any other manner authorised by this Act be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in manner provided by this subsection together with any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (2) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

Appointed
auditors.

112.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors or of the Society of Accountants in Edinburgh or of the Institute of Accountants and Actuaries in Glasgow or of the Society of Accountants in Aberdeen or of the London Association of Certified Accountants Limited or of the Corporation of Accountants Limited to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors elected and appointed under the Municipal Corporations Act 1882 Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “the appointed auditor.”

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the city.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal.

of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit. A.D. 1933.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the city auditors and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

113.—(1) The Corporation may (subject as hereinafter provided) pay out of the general rate fund as expenses incurred by them under the Municipal Corporations Act 1882—

- (a) reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;
- (b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the city.

(2) The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act

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A.D. 1933. 1875 shall be extended so as to enable the Corporation (subject as hereinafter provided) to subscribe to any hospital infirmary nursing institution or other institution of a similar character or to any charity philanthropic association or society or other associations institutions or societies rendering national or public service such sum or sums as they may from time to time think fit and to charge the amount of any such subscription to or apportion the same among all or any of their funds and revenues.

(3) The total amount which the Corporation may expend under the provisions of this section shall not exceed the amount which would be produced by the levying of a general rate of one penny in the pound.

Repeal of
certain
financial
provisions.

114.—(1) The following enactments are hereby repealed as from the first day of April nineteen hundred and thirty-three :—

The Norwich Corporation Markets Act 1860—

Section 41 (Income of Corporation under Act to be paid to credit of borough fund);

Section 42 (Corporation markets account to be kept).

The Norwich Corporation Markets Act 1862—

Section 18 (All moneys received under this Act to be paid to credit of borough fund and all expenses to be paid out of the same).

The Act of 1920—

Section 74 (Application of water revenue).

(2) The following enactments are hereby repealed as from the date of this Act :—

The Act of 1889—

Section 121 (Contributions to loans fund for dividends);

Section 122 (Contributions to loans fund for extinction of stock);

Section 148 (Dividends to joint holders);

Section 149 (Dividend warrants by post);

Subsection (1) of section 166 (Expenses).

The Act of 1902—

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Section 29 (Sinking fund);

Section 30 (Protection of lender from inquiry);

Section 35 (Scheme for fixing uniform period for
repayment of loans);

Section 37 (Power to use sinking fund instead of
borrowing).

The Act of 1920—

So much of section 72 (Application of provisions of
Act of 1902) as extends and applies section 29
(Sinking fund) of the Act of 1902 to the exercise
of the powers of the Act of 1920.

PART IX.

MISCELLANEOUS.

115.—(1) Subject to the provisions of this section the Corporation may accept hold and administer any gift of property whether real or personal for any public purpose connected with the city and may execute any works (including works of maintenance or improvement) incidental to or consequential on the exercise of the powers conferred by this section and where the purposes of the gift are purposes for which the Corporation are empowered to expend money out of the general rate fund or the general rate they may subject to any condition or restriction attaching to such power expend money out of the general rate fund or the general rate in the execution of such works in relation to the subject-matter of the gift. Gifts and bequests.

(2) This section shall not extend to property relating to affairs of the church within the meaning of the Local Government Act 1894 or to an ecclesiastical charity within the meaning of that Act.

(3) Accounts of the income and expenditure of the Corporation under this section shall be kept by the chief financial officer and shall be made up and audited as part of the general accounts of the Corporation.

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—
Extension
of section
2 (3) of
Public
Health
Interments
Act 1879.

116.—(1) Subsection (3) of section 2 of the Public Health Interments Act 1879 shall be extended to enable the Corporation to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument either in a cemetery provided under the Public Health Acts 1875 to 1925 or in a burial ground provided under the Burial Acts 1852 to 1906.

(2) Any such sum shall be invested in statutory securities and the interest thereof applied in maintaining the grave or grave space or monument in such manner as the Corporation think fit.

(3) Any such capital sum and the interest thereof shall be shown separately in the accounts of the Corporation relating to their cemetery or burial ground but otherwise the said interest shall be paid into the fund to which receipts derived from the cemetery or burial ground are paid.

Power to
contribute
to expenses
of sheriff.

117. The Corporation may pay to the sheriff of the city and such sheriff may receive from the Corporation such payment on account of the expenses of his office as the Council may by resolution from time to time determine to be reasonable but not exceeding a sum of two hundred and fifty pounds in any one year.

Appoint-
ment and
powers of
certain
deputy
officers.

118.—(1) The Corporation from time to time may appoint and remove a deputy town clerk a deputy surveyor a deputy medical officer of health and a deputy city accountant.

(2) The signature of any such deputy shall for all purposes be a sufficient authentication of any notice or other document which is or may be required to be authenticated by the signature of the town clerk the surveyor the medical officer or the city accountant as the case may be.

Market
tolls for
poultry.

119.—(1) The Corporation and their lessees from time to time may demand and take from any person bringing for sale or for show into any market place or fair for the time being under the management of the Corporation and used as a market or fair any live or dead poultry or from any person having charge of the same in such market or fair any tolls not exceeding one shilling

in respect of each score of such poultry or (if less in number than a score) one penny in respect of each bird. A.D. 1933.
—

(2) For the purposes of this section "poultry" includes fowls ducks geese game and other birds.

120.—(1) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy Act 1890 as amended by any enactment the Corporation may pay the whole of that sum or so much thereof as they think fit to the institution or person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of the surplus if any thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid. Payment of pension &c. of person of unsound mind.

(2) This section applies to any sum payable by the Corporation to an employee or former employee or pensioner of the Corporation or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund being either a lump sum not exceeding one hundred pounds or an instalment of a periodical payment not exceeding one hundred pounds per annum.

(3) Not less than fourteen days before exercising for the first time in relation to a person detained as aforesaid their power under subsection (1) of this section the Corporation shall give to the Master in Lunacy notice in writing of their intention in that behalf specifying the name and address of that person and the amount and nature of the sums in respect of which the Corporation intend to exercise the said power.

(4) If at any time the Master in Lunacy gives to the Corporation notice in writing that he objects to the exercise by the Corporation of the said power in relation to any person the said power shall as from the date of the receipt by the Corporation of the notice cease to be exerciseable by the Corporation in relation to that person unless and until the master withdraws the notice.

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(5) The Corporation shall be discharged from all liability in respect of—

- (a) any payment or application of money effected by them in exercise of the said power; and
- (b) any payment or application of money effected by them before the commencement of this Act which might have been effected by them in exercise of the said power if the provisions of subsections (1) and (2) of this section had been in force at the date of the payment or application and had applied to sums of any amount.

As to
payments
due to
deceased
employees.

121.—(1) On the death of an employee to whom a sum not exceeding one hundred pounds is due on account of salary wages superannuation allowance grant or repayment of contributions to any superannuation or other fund with or without interest if probate of the will of the employee or letters of administration of his estate are not produced within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation shall pay the sum to the person or persons entitled in distribution to the residuary estate of the employee in accordance with the provisions of paragraphs (i) to (v) inclusive of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 and in default of any such person to the Solicitor for the Affairs of His Majesty's Treasury Provided that—

- (a) the Corporation may if they think fit pay to any person who has paid the funeral expenses of the deceased employee such amount (not exceeding the total amount of such expenses) as the Corporation shall deem it reasonable to allow;
- (b) if the Corporation receive notice of any claim of a creditor of the deceased employee before the expiration of one month from the death of the employee they shall retain the whole amount due to the deceased employee in their hands or a sufficient sum thereof to satisfy the claim (whichever amount shall be the less) until the claim has been satisfied disproved or withdrawn.

(2) The Corporation before paying or distributing any moneys under this section to or among any person

or persons other than the legal personal representative of the deceased employee shall require— A.D. 1933.
—

- (a) where the total estate of the deceased employee including the amount of such moneys does not after deduction of debts and funeral expenses exceed one hundred pounds a declaration to that effect by the person or one of the persons to or among whom the Corporation propose to pay or distribute such moneys; and
- (b) where the total estate of the deceased employee including the amount of such moneys but after deduction of debts and funeral expenses exceeds one hundred pounds the production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty and of a duly stamped receipt for the legacy or succession duty payable in respect of such moneys or of a certificate stating that no legacy or succession duty is payable.

122.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1925 or the Teachers (Superannuation) Acts 1918 to 1925 or any other Act for the time being in force relating to the superannuation of teachers and not entitled to benefits under the Local Government and other Officers' Superannuation Act 1922 or the Poor Law Officers' Superannuation Act 1896 grant a weekly or other allowance (not exceeding one-half of his salary or wages) or in lieu thereof a gratuity of any sum (not exceeding two years' pay) to any of the Corporation's officers or servants who may be disabled or injured in the Corporation's service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in the Corporation's service.

Power to
grant
allowances
or gratuities
in certain
cases.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or been paid if he had continued in his office or service.

(3) In and for the purposes of this section the expression "officers or servants" shall include any teacher who is not entitled to a gratuity under the Teachers (Superannuation) Acts 1918 to 1925 or any Act

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A.D. 1933. — amending the same and who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the city or permanently and exclusively employed in any public elementary school in the city whether provided by the Corporation as the local education authority or not so provided,

Power to
expend
money on
lectures.

123. The Corporation may (in addition to any other powers exerciseable by them whether as the local education authority or otherwise) expend on the provision of lectures on educational or other subjects such sums as they may from time to time think fit not exceeding in any one year the sum of two hundred pounds and may charge for admission to such lectures.

Byelaws
as to
lodging-
houses.

124. Section 6 (Byelaws respecting houses divided into separate tenements) of the Housing Act 1925 shall operate so as to empower the Corporation to make byelaws with respect to the following matters relating to houses which are let in lodgings or occupied by members of more than one family (that is to say):—

- (1) For requiring a placard to be affixed in each room so let or occupied setting forth the cubical content and accommodation thereof:
- (2) For requiring a separate approach to each such room or tenement separately occupied without passing through any other room or tenement.

As to
periods of
letting as
affecting
common
lodging-
houses.

125. No house or part of a house within the city shall be exempt from the provisions with respect to common lodging-houses of the Public Health Acts or any byelaws made thereunder on the ground that accommodation in such house or part of a house is let for a longer period or longer periods than one day or is not let for a less period than one week.

Provision
of concerts
entertain-
ments &c.

126. Subject to the provisions of this Act—

- (1) The Corporation may provide or arrange for the provision or carrying on of suitable concerts entertainments exhibitions swimming contests athletic meetings regattas and amusements in any concert hall public hall assembly room pavilion conservatory winter garden bandstand or other building provided by them or in any baths bathing pools

or model yacht ponds belonging to them or in any parks or recreation grounds for the time being vested in them or under their control or upon any land belonging or leased to them and may make such charges as they may think fit for admission thereto and the Corporation may let any such buildings baths bathing pools model yacht ponds or rooms belonging to them or any parks or recreation grounds for the purposes of such concerts entertainments exhibitions swimming contests athletic meetings regattas or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Corporation may think fit :

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—

Provided that nothing in this subsection contained shall enable the Corporation to use any concert hall public hall assembly room pavilion conservatory winter garden or other building provided by them for the purposes of a cinematograph theatre :

Provided also that the concerts entertainments and amusements which the Corporation may provide under the powers of this section shall include concert and pierrot entertainments and other like entertainments whether costume is or is not used in connection therewith and either with or without appropriate scenery but the Corporation shall not themselves provide or arrange for the provision or carrying on of stage plays performed by persons other than members (resident in or near the city) of any amateur dramatic society or any entertainment for which scenery or theatrical costume is used and which forms a complete programme of variety entertainment as usually given at a music hall :

- (2) The Corporation may in any baths bathing pools model yacht ponds parks or recreation grounds provided by them enclose an area for the purpose of any such concerts entertainments exhibitions swimming contests

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athletic meetings regattas and amusements
as aforesaid :

- (3) The Corporation may provide and sell or authorise any person or persons to provide and sell programmes of any concerts entertainments or performances given in pursuance of this section :
- (4) The Corporation may make byelaws for securing good and orderly conduct during any concerts entertainments exhibitions or amusements provided or carried on in pursuance of the provisions of this section :
- (5) The Corporation may pay or contribute towards the cost of providing and maintaining at railway stations and public places in the city and on tramways and omnibuses plying in the city or between the city and other places and in newspapers published in the county of Norfolk advertisements of any concerts entertainments exhibitions swimming contests athletic meetings regattas or amusements given or provided in pursuance of this section :
- (6) Any expenses incurred by the Corporation under the provisions of this section may be paid by the Corporation out of the general rate fund. Provided always that the net amount of any payments or expenses made and incurred by the Corporation under the provisions of this section after deducting any moneys received by them under those provisions shall not in any one year exceed the amount (calculated in accordance with the rules made from time to time by the Minister under sections 9 and 58 of the Rating and Valuation Act 1925) which would be produced by a rate of one penny in the pound levied in that year to the general rate.

Amendment
of section 80
of Public
Health
Act 1907.

127. Any person who fails to comply with an order made by the Corporation under section 80 (As to leading or driving animals) of the Public Health Acts Amendment Act 1907 shall be liable to a penalty not exceeding forty shillings. Provided that any order

to which the provisions of this section are to apply shall be submitted to the Secretary of State for approval and the provisions of this section shall not apply in respect of such order until such approval has been obtained. A.D. 1933.
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128. The Corporation shall with respect to any cemetery belonging to them and established under the Burial Acts have the same power of making byelaws as if such cemetery had been established under the Public Health (Interments) Act 1879. Byelaws as to cemetery.

129. If a justice is satisfied on complaint by any rate collector that any person is quitting or about to quit any premises in the city and has failed to pay on demand any general rate water rate or charge or electricity charge which may be due from him and intends to evade payment of the same by departing from the city the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the said rate collector to seize forthwith and detain the goods and chattels of such person until the complaint is determined upon the return of the summons. Recovery of rate from persons removing.

130. The Corporation may at any time by resolution determine with respect to any hereditament for the time being belonging to them the rent of which is payable or is collected at intervals of less than a quarter of a year to do any of the things which owners may do by agreement with the rating authority under subsection (2) of section 11 of the Rating and Valuation Act 1925 with the like conditions and consequences (other than the condition as to agreement in writing with the rating authority) as are applicable to owners under that section. As to operation of section 11 of Rating and Valuation Act 1925.

131.—(1) Any committee appointed by the council under the Municipal Corporations Act 1882 or any other Acts or any local Act or Order confirmed by or having the force of an Act of Parliament shall if the council so resolve have all the powers of a committee appointed under section 200 of the Public Health Act 1875 Provided that the provisions of this section shall not affect the powers of any watch committee appointed under section 190 of the Municipal Corporations Act 1882 acting as police authority for the city. Committees of council.

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(2) So much of section 22 of the Municipal Corporations Act 1882 as is inconsistent with subsection (1) of this section shall cease to apply to the Corporation.

Service of
summons on
members
of council.

132. Notwithstanding anything contained in the Second Schedule to the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member of the council by post by prepaid letter at the ordinary rate of postage and shall be deemed to be duly sent transmitted or served if sent by post as aforesaid addressed to such member at his last or usual place of abode.

In executing
works for
owner
Corporation
liable for
negligence
only.

133. Whenever the Corporation the surveyor or the sanitary inspector under any enactment or byelaw for the time being in force within the city execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation the surveyor or the sanitary inspector shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or the sanitary inspector or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Power to
charge
supervision
in addition
to cost.

134. Whenever under any public general Act from time to time in force in the city or under any local enactment the Corporation either on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Corporation may if they think fit (in addition to the actual cost of such works) charge and recover in respect of plans sections measuring supervision and all other matters an amount not exceeding five per centum of the amount of the actual cost of such works.

135. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part VI (Streets buildings sewers and drains) Part VII (Infectious disease and sanitary) and this Part of this Act as if those purposes had been mentioned in the said section 102.

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—
 Power to enter premises.

136. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part VI (Streets buildings sewers and drains) Part VII (Infectious disease and sanitary) and this Part of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the work required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said work he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such work.

Penalty on occupier refusing execution of Act.

137. Subject to the provisions of this Act the provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act other than byelaws which the Corporation may make under Part IV (Electricity) thereof.

General provisions as to byelaws.

138. Where under this Act or under any general or local Act for the time being in force in the city the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Breach of conditions of consent of Corporation.

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—
Apportion-
ment of
expenses in
case of
joint
owners.

139. Where under the provisions of this Act or any local Act in force in the city the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Damages
and
charges to
be settled
by court.

140. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

As to
appeals.

141. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part VI (Streets buildings sewers and drains) or Part VII (Infectious disease and sanitary) of this Act or by any order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

Several
sums in
one
summons.

142. Where the payment of more than one sum by any person is due under any Act or Acts or Order or Orders for the time being in force within the city any summons or warrant issued for the purposes of any such Act or Acts or Order or Orders in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Compensa-
tion how to
be deter-
mined.

143. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

144. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. A.D. 1933.
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Judges not disqualified.

145. The following sections of the Act of 1902 and the Act of 1920 shall (subject as regards mortgages granted under the provisions of section 38 of the Act of 1902 to the provisions of that section) extend and apply to the exercise of the powers of this Act as if the same were with any necessary modifications (including the substitution of the Minister for the Local Government Board) re-enacted in this Act (namely) :— Applica-
tion of
provisions
of Acts of
1902 and
1920.

The Act of 1902—

- Section 25 Mode of raising money (except the proviso);
- Section 26 Provisions of Public Health Act as to mortgages to apply;
- Section 31 Corporation not to regard trusts;
- Section 32 Appointment of receiver;
- Section 40 Inquiries by Local Government Board.

The Act of 1920—

- Section 66 Persons under disability may grant easements &c.;
- Section 67 Extinction of private rights of way;
- Section 68 Power to retain sell &c. lands;
- Section 69 Proceeds of sale of surplus lands;
- Section 75 Expenses of execution of Act;
- Section 83 Application of section 265 of Public Health Act 1875;
- Section 84 Recovery of penalties &c.;
- Section 85 Recovery of demands in county court and Guildhall Court;
- Section 86 Informations by whom to be laid;
- Section 87 Saving for indictments &c.;
- Section 88 Powers of Act cumulative;
- Section 91 Crown rights :

Provided that—

- (a) Section 40 of the Act of 1902 shall have effect as if the words “ five guineas ” were therein inserted instead of the words “ three guineas ”;

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(b) In the exercise of the powers of the said section 68 of the Act of 1920 as so extended and applied the Corporation shall not without the consent of the Minister sell lease or otherwise dispose of any lands or interests therein at a price or rent or for a consideration or value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

Costs of
Act.

146. The costs charges and expenses preliminary to and of and incidental to preparing applying for obtaining and passing this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1933.

PROVISIONS AS TO BONDS.

1. Bonds shall be secured on the revenues of the Corporation.

2. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than five years as the Corporation may determine.

3. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

4. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the Guildhall Norwich on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

5.—(1) The chief financial officer shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars :—

(a) The name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided ;

(b) The date of registration of each holder and the date on which he ceased to be so registered.

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(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

6.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect :—

No.....

CITY OF NORWICH.

Norwich Corporation Bonds.

—per centum Norwich Corporation bond repayable at
par.....19.....at the Guildhall Norwich.

This is to certify that.....of.....
is the registered holder of a corporation bond for.....
.....pounds (£.....) issued by the lord mayor
aldermen and citizens of the city of Norwich under the
Norwich Corporation Act 1933 at.....

Signed.....

Chief financial officer City of Norwich.

Date.....

7. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.

8.—(1) The transfer of a Corporation bond shall be by deed in the following form or in a form substantially to the like effect :—

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FORM OF DEED OF TRANSFER.
Norwich Corporation Bonds.

I
in consideration of the sum of
paid by
(hereinafter called "the transferee") do hereby assign
and transfer to the transferee
To hold unto the transferee his executors administrators
and assigns subject to the several conditions on which I
held the same immediately before the execution hereof
and I the transferee do hereby agree to accept and take
the said
subject to the conditions aforesaid.

As witness our hands and seals this
day ofin the year of our Lord
one thousand nine hundred and

(2) A bond may be transferred in whole or in part so how-
ever that any part transferred shall not be for an amount other
than an amount for which a bond may be issued by the
Corporation.

(3) The deed of transfer shall be delivered to and retained
by the Corporation and the Corporation shall enter a note
thereof in a book to be called the "Register of transfers of
Norwich Corporation bonds" and shall endorse on the deed of
transfer a notice of that entry.

(4) The Corporation shall upon receipt of the deed of transfer
duly executed and properly stamped together with the certificate
issued in respect of the bond enter the name of the transferee
in the register and shall issue a new certificate or certificates
to the transferee or to the transferor and transferee as the case
may require.

(5) Until the deed of transfer and the certificate have been
delivered to the Corporation as aforesaid the Corporation shall
not be affected by the transfer and the transferee shall not be
entitled to receive any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond
may if they think fit require evidence by statutory declaration
or otherwise of the title of any person claiming to make the
transfer.

9.—(1) Any person becoming entitled to a bond by reason
of the death or bankruptcy of a holder or by any lawful means
other than a transfer may by the production of such evidence of
title as the Corporation may require either be registered as

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A.D. 1933. holder of the bond or instead of being himself registered may
— make such transfer of the bond as the holder could have made
and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation the Corporation shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

10. The Corporation shall not be required to pay any executors or administrators any interest on bonds held by their testator or intestate until the probate of the will or the letters of administration has or have been left with the Corporation for registration.

11. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

12. No notice of any trust shall be entered in the register or in any other book kept by the Corporation or be receivable by the Corporation.

13.—(1) If at any time any interest due on any bonds remains unpaid for two months after demand in writing the persons entitled thereto may apply to the High Court for the appointment of a receiver and the court may if it thinks fit appoint a receiver on such terms as it thinks fit.

(2) The receiver shall have the like power of collecting receiving recovering and applying moneys and of assessing making and recovering all rates for the purpose of obtaining the same as the Corporation or any other officer thereof would or might have and such other powers and duties as the court thinks fit and shall apply all moneys so collected and received after paying all such costs as the court may direct for the purposes of this Act.

Printed by EYRE AND SPOTTISWOODE, LIMITED,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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